

THE
PENNSYLVANIA JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED QUARTERLY

UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR ALLEVI-
ATING THE MISERIES OF PUBLIC PRISONS," INSTITUTED 1787.

"The separation of one prisoner from another is the only sound basis on which a reformatory (prison) discipline can be established with any reasonable hope of success."—*Fifth Report of Inspectors of English Prisons.*

APRIL, 1853.

PHILADELPHIA:
E. C. AND J. BIDDLE,
SOUTHWEST CORNER OF FIFTH AND MINOR STREETS.
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VOL. VIII.

TERMS:—ONE DOLLAR A YEAR IN ADVANCE.

NO. II.

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NOTICE OF THIS JOURNAL.

“It embodies more information on the subject of prisons, arranged and expressed in the spirit of literature and science, than any other publication of our country and will compare with any Journal devoted to this department of knowledge in Europe.”—*Hon. Charles Sumner’s Speech, in debate on prison question in Boston, May, 1847.*

RECENT NOTICES.

From the North American and United States’ Gazette.

We have received from Messrs. E. C. & J. Biddle the last number of the Pennsylvania Journal of Prison Discipline, which is published quarterly, under the direction of the Philadelphia Society for alleviating the Miseries

of Public Prisons. A glance through its pages shows what is well understood—that it is a

([See 3d page of Cover.](#))

THE
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VOL. VIII.—APRIL, 1853—No. 2.

. I.—MORAL AND RELIGIOUS INSTRUCTION OF CONVICTS.

THE readers of this Journal need not be told that we are not very sanguine in our expectations of the permanent reformation of the mass of convicts. There are doubtless instances enough of success in such efforts to warrant and encourage them, and we are not to suppose that they are ever wholly useless. The true position for us to take is this. The earlier we address ourselves to the cultivation of right principles and habits in a human being, the more hopeful is the prospect of success; but there is a power in truth and love, which has not seldom overcome the most sturdy depravity; and while we have the precept and example of Him who “came not to call the righteous but sinners to repentance,” to prompt and stimulate our efforts in that direction, we have His promise too, that whatever is done in His name, and out of love to Him, shall in no wise lose its reward.

It is under the influence of these views that we have looked with interest and anxiety to the religious and moral influences which enter into the discipline of our penitentiaries. To no section of their annual reports, do we turn with more eagerness than to that from the chaplain or moral instructor; and though now and then a well-digested and satisfactory account is furnished, we are often compelled to be content with very vague generalities. A specimen of the religious discourses addressed to these unhappy congregations; a true sketch of a dialogue on some religious or moral topic held with one of them in his cell; a synopsis of a month’s labors, showing the various methods employed, direct and incidental, to reach the sympathies, and awaken better motives and desires of the heart, or a brief analysis of those obstacles to moral and religious influences, which

may be properly regarded as peculiar to prison life,—all these, or any of them would greatly relieve the monotony of the reports of chaplains and moral instructors, and would add materially to our means of judging of the fitness of their labors to the character and circumstances of those on whom they are bestowed. We are often favored with such specimens of the various methods in which instruction in secular knowledge is conveyed to the ignorant, and enabled to choose between them according to their apparent appropriateness. Why should not the like opportunity be afforded in respect to the more difficult and perplexing task of enlightening adult ignorance, counteracting deeply-depraved tendencies, and up-rooting established habits of evil?

It was with the hope of bringing this important department of our penitentiary discipline more distinctly to view, and of making its principles more practical and definite, that the Prison Society recently took the subject up, and referred it to a committee for consideration and report.

At the meeting in January last a full report was submitted, from which we make the following extracts:

IT will be conceded on all hands, we presume, that moral instruction is an important element of every system of Prison Discipline. We are aware that in some of the largest prisons of Europe little, if any, importance is attached to it; but whenever there is any hope of reforming the character of a convict, or of establishing a permanent restraining principle, it must be founded on some improvement in his moral feelings and habits.

That peculiar difficulties and embarrassments should attend any approach to this unhappy class of our fellow beings, with a view to mould moral character, would seem very natural; but is it not possible that we exaggerate

the difference between them and the mass of the world, in respect to their susceptibilities of good impressions? May we not easily forget that between a score of men in our prison cells, and twenty score of men that may be selected from society at large, the only difference is that the former are detected rogues, and the latter are (perhaps greater) rogues undetected? The *ins* and the *outs* are equally open to moral influences, and yet we should be very likely to think of the *ins* as almost hopelessly beyond their reach, while the *outs* might be esteemed fair subjects of them.

It is moreover surprising how much farther a conviction of crime goes to exclude men from the pale of sympathy and the offer of assistance, than crime itself. The guilt of hundreds of men at large is as fully established in the public mind, as that of any convict in our penitentiary; yet we do not regard it as at all impracticable to reach them with appropriate moral influences. We should not hesitate to commend books to their attention, to invite and urge them to attend some place of worship, nor to counsel them to abandon all evil courses. Why should we have less faith in the like means when employed upon no worse men, after their character has been defined by a judicial sentence? For though true it is that the presumption of innocence is only taken away by the proof of guilt, yet when looking at men as the subjects of moral influences and sympathies, the fact that one is in prison and another at large really makes much less difference than is generally supposed.

Thus much it seemed needful to say, by way of answer to those who distrust all efforts for the reformation of convicts, regarding them as visionary, if not Quixotic. It is to be regretted that such incredulity sometimes possesses the minds of those who have the chief oversight and direction of the discipline of our penal institutions. The deception,

hypocrisy and treachery of convicts, which they so often witness, naturally confirms their distrust and may very easily excite prejudices against any attempt to improve their moral condition.

We are far from representing the moral and religious instruction of convicts as an easy task. It requires much patience, simplicity, tact and earnestness, a rare knowledge of human nature, and a combination of adjunct influences which are not always at command. We only mean to affirm that whatever force lies in the argument against efforts for the moral reformation of convicts, may be used against such efforts for any other class of men.

It would be a happy thing for our prisons, if the spirit of Christian benevolence were sufficiently awakened and active to ensure the needful measure of sympathy, instruction and moral culture from voluntary and unpaid service. But necessity seems to be laid upon us to provide a more permanent and reliable system of agencies and influences. One or more officers appointed to this specific work of giving instruction to the ignorant, and presenting motives and encouragements to a better life to those who are accustomed to do evil, seems to be indispensable to secure any thing like a proper attention to this important department. Hence the call for a chaplain or moral instructor.

In looking at the condition of our two Philadelphia prisons in respect to the provision for moral instruction, we are constrained to say, that it is not such either in efficiency or success, as we think desirable, attainable, and indeed absolutely necessary. Instead of bringing to view, however, what some of us might regard as grave defects in the present incumbents of the moral instructor's office, we will suggest what we cannot but regard as

indispensable requisites in such a functionary, and leave those who have the appointing and removing power to exercise it at their discretion.

I. *A moral instructor should exemplify in the minutest particulars the moral principles he inculcates.*—Any obvious neglect or evasion of duty, any appearance of hypocrisy or inconsistency, any sallies of ill-humour or fretfulness, any impatience of contradiction and unteachableness in his pupils, the most trivial breach of promise, or in a word, any departure from an upright, open and ingenuous deportment, will detract sensibly from his power to do good.

II. *He should possess the faculty of adapting himself to the various characters and temperaments of convicts.*—We do not mean by this that he should have any other faculty than such as shrewd men of common sense ordinarily possess, and on which they depend for much of their success in business. But it is by no means a rare thing to find a prison chaplain, or moral instructor peculiarly deficient in this point, and there is nothing which is likely to strike the class of people with whom he has to deal more quickly or more unhappily than a weakness of this kind, especially in one who is set to be their teacher and guide.

III. *In such an office, the motive of benevolence and sympathy should be seen to have the predominance over the motive of self-interest.*—The laborer in this department, as well as in all others, is worthy of his hire, but if those he would influence discover in the manner of doing his work, or in his general intercourse, that he acts the part of a mere functionary, having his beat like a police officer, and fulfilling an appointed task like a delver or ditcher, his usefulness will be greatly circumscribed. And this suggests

IV. A fourth quality in a chaplain or moral instructor, viz.: *a warm, glowing, personal, enthusiastic sympathy with the population of the prison.*—He is a physician among a company of diseased and dying patients. They are bidden to look to him for direction and to confide in his prescriptions, (though not in his power or skill,) for a cure of their maladies. If he has felt in his own person the presence of the same disease, (though perhaps in a less offensive and aggravated form,) and has known the value of a remedy, he will not look with indifference on their symptoms, nor hear unmoved their sighs and groans. He will have a tear of sympathy for the suffering; a helping hand for the weak and trembling, and will deal honestly but gently with the impatient and froward. They are guilty, and is he without sin? They are suffering the penalty of a wholesome law, and what but an unseen hand has restrained him from violating it? While therefore, he sets before them, honestly and faithfully, the evil of their ways, he will give power and persuasiveness to his words by the tender and sympathizing tones in which they are uttered. While he points them to a merciful and faithful high priest that has past into the heavens, and ever lives to make intercession for guilty, penitent men, he shows that, like that same high priest, he is touched with the feeling of their infirmities and sympathizes in their bondage.

V. A chaplain or moral instructor *should have good judgment in the selection of subjects of conversation and instruction, and in his methods of illustration.*—It is not unfrequently the case, that the most harsh and repulsive views of moral and religious truth are presented to those whose minds are already filled with prejudice and hostility, as if it were needful (as it is said to be in some bodily diseases) to make them worse before attempting to make them better. A man of ferocious temper is the last person to tame a wild beast; nor will a severe and offensive presentation of the most precious truth be likely to win an already alienated mind. To

charge home their guilt on convicts, and make them feel that they have as good as they deserve, even if their situation were much worse than it is, will never pave the way for moral influences.

It requires good judgment to select topics for the moral and religious instruction of convicts, and much skill and tact to illustrate them. A false position on a moral subject will be quite as likely to strike a congregation of rogues as a congregation of honest men; and it is wonderful how the faith of a disciple is weakened by a single material error in a teacher. The moral instructor of prisoners, having nothing to do with points of polemic theology or subtle casuistry, has a plain and easy path if he is only willing to keep it. The elementary truths of religion and morality, which lie within the comprehension alike of a child and of an angel, and which are recognized by all sober-minded men as the basis and stamina of all true moral reformation, are to be explained and enforced, and their influence in promoting happiness, respectability and prosperity in this life and in preparing us for the future, is to be clearly exhibited.

In illustrating these truths, much depends on a seasonable reference to those things within the knowledge or present consciousness of the convicts. Incidents of daily observation—the familiar phenomena of nature, their own history in its social and moral relations, (with which the teacher is supposed to have made himself acquainted) will furnish topics appropriate in character and abundant in variety.

VI. *It is very important that a moral instructor should possess the faculty of casual teaching.*—It is an easy thing to occupy ten or fifteen minutes in talking with a convict, but if he would leave something behind him for the man to ponder and reflect on when the cell-door closes again, the visitor or

instructor must weigh well what he says, and seize the opportunity to drop a casual word of admonition, or encouragement, or intimidation, as the condition and habits of each individual may warrant.

These casual suggestions often have far more weight than a studied sermon, or an elaborate and earnest exhortation. The methods of exerting an influence over others, and especially over thoughtless and perverse persons, would be much more appropriate and effective were they governed less by the teacher's own state of mind, and more by the state of the mind which he wishes to change. Moral instructors of all grades are oftentimes in the dark respecting the mental condition and habits of their catechumens; and prison chaplains or instructors not unfrequently err in occupying so much of their interviews in expostulation, reproof and entreaty, as to leave no proper opportunity to hear, much less to draw out, an expression of the convict's own feelings. In such a case their labors, however well meant, lose much of their value, and are sometimes worse than wasted.

VII. *It is highly desirable that instruction in sound learning should be combined with instruction in religious and moral duties.*—He who opens our minds to the apprehension of new and valuable ideas, gains an important ascendancy over us. The labors of a faithful and skilful teacher are always remembered with gratitude. Now there are a thousand opportunities in the course of ordinary instruction, even in the simple branches of reading and writing, to throw out suggestions of duty and interest, which a watchful teacher will eagerly improve. In the setting of a copy, in the reading of a paragraph, and even in the spelling of a word, such an opportunity may present itself. Powerful and lasting associations are often established in this way. The familiar sentence—

“Evil communications corrupt good manners,”

which has for a century perhaps, been used as a copy in writing-schools and classes, and which was originally selected, probably, because there is so large a proportion of letters of the simplest formation, has doubtless been fixed in the minds of thousands by the use of it in such a connection. When it is remembered how transient, uncertain and unfavorable is the opportunity to impress at all the minds of convicts, we may well insist upon the strictest economy in the use of such as we have.

VIII. As a library has become an almost indispensable appendage to our prisons, *the moral instructor should be competent, not only to select the most appropriate book for the use of the convicts, but also to distribute them with judgment when under his care.*—The most preposterous errors are often detected in some of our prisons on both these points. Where books are kindly given for such a purpose, reference is seldom had to the appropriateness of them. They are not wanted by the donor, and are therefore given to the prison. The moral instructor should be held responsible for every book that goes upon the shelves of the prison library, and he should be so familiar with the general character and design of each volume, as to determine as to its appropriateness to the condition, capacity and present habit of each prisoner's mind.

IX. *We are clear that the moral instructor should reside within the prison walls, and be expected to have the same constancy in duties and responsibilities as the warden, or any other resident officer.* There is no hour

of the day in which he may not find or make an opportunity of doing good, and it is only by identifying himself with the daily routine of prison-duties, and with the interests of all concerned in their administration, that he can properly execute his work.

*X. The character and position of the moral instructor should be such as to command the respect and confidence of the officers and inspectors.—*There is no such thing as hood-winking prisoners on such a subject as this. They soon discover how much respect the executive authorities feel for the man who is appointed to such an office, and it is vain to suppose their estimation of him by those within the cells will be any higher. The moral thermometer on the outside and the inside of the partition wall, will indicate a similar temperature on this, and on most other subjects. There are prison chaplains and moral instructors in the world, whose characters and opinions challenge the regard and respect not only of prison officers and visitors, but of the public at large; and such have uniformly exerted a most sensible and happy influence on the wretched congregations committed to their charge. If the moral instructors in our State and County prisons are of this stamp, we may well congratulate ourselves that so important a post is adequately filled. If they are not possessed, in some good degree, of the qualities which have been enumerated, the sooner they are removed the better shall we regard it for the prison and for the public, for we are clear that an incompetent incumbent of such an office is an instrument of more evil than good.

. II.—REPORT OF THE DISCIPLINE AND MANAGEMENT OF THE CONVICT PRISONS AND DISPOSAL OF CONVICTS,

1851-2, with notes on the Construction of Prisons, Treatment and Disposal of Juvenile Offenders, &c. By Lieutenant Colonel Jebb, Surveyor General of prisons of England, &c., pp. 218, with numerous plates.

THIS document is dated in June last, and came to hand since our January number was issued. In a cursory reading of it, we have noted several points of general interest, and without attempting a classification of the topics, we will imagine our readers to be looking over our shoulder as we rapidly turn the leaves, making now and then a brief comment or two.

In the ten prisons for separate confinement in England proper, there is room for 2,459 convicts, and 2,193 were in prison, leaving unoccupied accommodations for 266. In the three prisons for labor on the public works there were 1,931 confined, and only 17 more could have been received. In the hulks, there were 1,780 and only two vacancies; and in the Juvenile Prison at Parkhurst, there were 577 tenants and 29 vacancies. The total convict population of the year was 9,033, and there were 355 more on hand December 31, 1851, than at the same date in the previous year. Of the whole number, 13 were removed to Lunatic Asylums during the year, 147 were pardoned, (of whom 76 were on medical grounds,) and 111 died.

In the report of the Millbank prison, we have an incidental testimony from the chaplain to the moral advantages of separation, which we think valuable.

Of *moral improvement*, however, as regards the *many*, embracing change of principle and *real amendment of character*, he feels (he says) considerable diffidence. Bearing in mind the circumstances of the prison,—the period of separate confinement, rarely exceeding six months, being somewhat brief to be *permanently effective* for reformatory purposes—the danger of any good impressions made during that period (the seed-time of reformation) being effaced when prisoners are transferred to the *large rooms and general ward*, where the opportunity is withdrawn from those under incipient convictions of being ever *left alone with their conscience*, and the spiritual exercises of the more advanced in religion, both meditation and prayer, are subject to disturbance.

If this opinion is the result of intelligent and long continued observation, (as we suppose it to be,) it is certainly very conclusive as to the value and indispensableness of convict-separation as a means of reform. The italic words are all found of the same character in the original document. They form, when read by themselves, a memorable sentence, and one which we respectfully commend to all those who stand in doubt on the subject.

“Moral improvement or real amendment of character, to be permanently effective among the many, is not to be expected in large rooms and general wards. They require to be left alone with their conscience.”

From *Pentonville*, we have a very favorable report, especially as it regards the health, physical and mental. Only two cases of insanity have occurred during the year among 561 prisoners, and of these one had low intellectual development, which made him incapable of learning a trade; and the other, though only 26 years of age, had been previously convicted

and imprisoned three times. He was suddenly seized with mania three weeks only after commitment, and cerebral disease was presumed by the physician to have been upon him when received. Concerning both of the cases the physician remarks, that the “insanity was not traceable to the operation of separation on the minds of the prisoners.”—p. 11.

We venture to say that no prison on any plan or system can show cleaner papers respecting the health of an equal number of convicts.

It seems that immediately succeeding this year of remarkable health, in the course of the first half of the year 1852, “an unusually large number of cases of mental affection” occurred, which led to the substitution of brisk walking in concentric rings for exercise in separate airing yards—the abolition of the mask or peak which was found useless as a preventive of recognition, and the doing away of the chapel stalls. It is well known that these three features of the Pentonville system were designed to carry out the principle of strict separation. If they were found ineffectual for this purpose, their abandonment is a matter of no moment; and as the term of imprisonment in this penitentiary is regarded as probationary, and is moreover restricted to twelve months, we can scarcely suppose that such changes were required by way of relaxing the discipline. Colonel Jebb gives us to understand that the prejudices of the public against separate confinement are gradually subsiding, and he thinks it “of greater importance to the more general introduction of the system that every effort should be made to secure its great advantages without again raising the question of its safety.” Is there no danger, however, that its efficacy may be so far diminished by needless relaxation, as to make it scarcely worth the trouble of introducing it?

We have not a shadow of evidence, nor even an intimation that the supposed increase of insanity was in the slightest degree the result of severe discipline; nor have we any report from the medical officer, visiting or resident, as to the existence of such “an unusually large number of cases of mental affection.” But whether they existed or not, “they were believed to exist,” and the Board of Commissioners directed the changes to which we have above adverted. In the progress of the inquiries on the subject, it was suggested to the visiting director, that he should obtain the joint opinion of the Governor, Chaplain and Medical Officer on sundry points, among which were the following:

1. Whether it appears necessary to reject any particular description of prisoners as being unfit subjects for separate confinement, such, for instance, as those of dull intellect, or others who do not speak the language, and are, therefore, less capable of instruction.
2. Whether the arrangements at Wakefield and Leicester, with regard to assembling for public worship, school instruction, exercise in association, &c., are likely to be the cause of a more favorable effect of separate (?) confinement on apparently the same class of prisoners.
3. Whether a greater stimulus or a greater degree of vigor cannot be imparted to the trades and occupations in the cells.
4. Whether it will be necessary and desirable, after a certain period of confinement, to exercise all prisoners in association, and whether the removal of both the long ranges of exercising-yards will be sufficient for such purpose.

5. Whether the garden at the back of the prison might not be advantageously cultivated by prisoners selected from those who may have been a certain period in confinement.

6. Whether dispensing with the mask would be likely to be attended with a beneficial effect.

We should have been gratified to know the answers which were returned to these pertinent and important inquiries. We think the second question would puzzle the wisest commissioner that could be found, whether association will be the cause of a more favorable effect of separate confinement on apparently the same class of prisoners! Or to vary the phraseology, what is likely to be the effect of association upon separation! In the absence of any report from the medical officer, and with the health report of the preceding twelvemonth before us, we cannot doubt that some misapprehension has arisen from exaggerated and possibly fictitious representations.

A new chapter of observations and conclusions is opened to us at Millbank by Dr. Baly, the visiting physician. It will be remembered that no little discrepancy of opinion occurred a short time since between the resident and visiting physician of the penitentiary at Pentonville,^A and hence we should feel disposed to suspend full confidence in the present statement, till we know what the other doctor has to say. But one or two facts may be safely cited, which will serve to show how entirely irreconcilable some theories on this subject are with each other, and with the actual phenomena. Of eight insane convicts transferred during the year 1851 from Millbank to the Lunatic Hospital, five were decidedly insane when received into the prison. The aggregate of eight years gives us sixty-

five cases of insanity among 7,393 convicts, of whom thirty-five were insane when received, and nine of the remainder were of very low intellect, and only twenty-one were of sound mind; of these twenty-one, thirteen recovered in the prison, leaving only eight all told, or about one in 1,000 as sufferers, in this form, from their incarceration! What prison or what mode of discipline can show a better result than this?

A See Journal of Prison Discipline for April, 1852.

Among the very remarkable things disclosed in this report of Dr. Baly, we find that during the first four years of the period of time embraced in it, when the average term of imprisonment was less than one hundred days, the cases of insanity were 11 or 3.28 per 1,000 prisoners, and that in the last four years, in which fifty-six days were added to the average length of confinement, the cases of insanity rose to 19 or 4.70 per 1,000! So that, omitting those who recovered in prison, the ratio in the first four years was 1.49 per 1,000, and, the last 2.72, or nearly double! It has been generally conceded even by the most zealous opponents of separation, that its tendencies are quite harmless and even wholesome, when not extended much beyond twelve months; but Dr. Baly's report presents an entirely new view of the case. He tells us that the ratio of insanity is twice as high in the second three months of confinement, and more than three times as high in the third, as it is in the first. His table is as follows:

Periods of Imprisonment.	Approximative Number of of Prisoners who passed through each Period.	Number of Cases of Insanity occurring in each Period.	Annual ratio per 1,000 of Cases of Insanity for each Period.
First Three Months	16,000	9	2.25
Second Three Months	8,400	9	4.28
Third Three Months	4,200	8	7.61
Fourth Three Months, or later	1,200	4	--

But it unfortunately happens that the reasons assigned for these results would go to disprove them. “The various feelings of remorse, shame and despondency,” and the “withdrawal of the external sources of excitement,” would be much more likely to work upon convicts’ spirits during the first three months, than during the third three months, especially when the termination of the sentence is so near at hand. But the whole statement is so extravagant, and so contrary to the received opinions of even anti-separatists themselves, that we are disposed to give it very little weight. Dr. Given, late resident physician of the Eastern State Penitentiary, whom we must all regard as at least an uncommitted party, expresses his conviction of the entire safety of separation for the term of twelve months, even in the case of minors; but beyond that, in their case, he would seldom extend it. See his Report for 1852.

We have yet to be informed of the first case of the loss or serious impairment of a convict’s mental or bodily health from the judicious and

faithful administration of the separate system of discipline; but whatever real or fancied dangers to body or mind attend it, one thing is made clear by the report before us, viz., that it is wonderfully efficacious.

We infer from several passages in this document, what we have not seen more specifically stated elsewhere, that “the principle of the discipline now established in the English prisons, contemplates a confinement of the convict in strict separation twelve months, to prepare him for a term of labor in association;” and this latter stage, from its “exposing prisoners to many temptations, which they would have to encounter on their final release from penal restrictions in England, is to prepare them for that event.” So that we have three grades or stages in the process; separation follows conviction and introduces to association, which is preparatory to transportation.

The convict, having passed the appointed term in separate confinement, is removed to the establishment in Portland Island (or, it may be, when suitable arrangements are made, to one of our Dockyards), to labor in the formation of the harbor of refuge, or on some public work. There, although he is still under religious instruction and very judicious superintendence, his principles and the reality of his reformation are subjected to a severe test. He is associated with other convicts, and, as it cannot be supposed that all have been reclaimed, he meets with many temptations.

The officer in charge of the Portland Island establishment, says:

The subdued, improved, and disciplined state in which the convicts generally arrive at Portland, from the stage of separate confinement, appears to be an admirable preparative for their

transfer to the greater degree of freedom unavoidable on public works. Those convicts who have been for a considerable time at Portland, have not usually indicated any falling off in morals or conduct, but, on the contrary, several instances have occurred in which men, on whose conduct the comparative degree of liberty here alluded to, appeared to have at first an unfavorable effect, have afterwards become orderly and industrious, and content to work their way cheerfully to the prospective advantages held out to convicts of that character.

Such strong testimony to the efficiency and powerful reformatory influence of separation, is of great value.

Some interesting items are furnished on the extent and expenses of transportation. The number of convicts sent to the Australian colonies from Great Britain in 1847, was 938, in 1851, 1568. The average number transported annually from Great Britain, is given at 1750—1300 males, and 450 females.

The estimates for 1852-53 for services connected with the transportation of convicts amount to the gross sum of 101,041*l.*, which provides for the removal of 3,100 males and 800 females from Great Britain and Ireland to Australia, and of 800 to Bermuda and Gibraltar.

Deducting the probable expense devoted to the latter service, there might remain about 95,000*l.*, as the amount required for the removal of 3,900 convicts, or 24*l.* per head.

From various movements in the present parliament, we are led to infer that transportation will soon be abandoned. This event is more than

intimated in the report before us. It is inferred from the tenor of a brief discussion of the scheme of the select committee of the House of Commons, announced two years since, in the form of three specific propositions, viz.:

I. That after prisoners under long sentences have undergone a period of separate confinement, the remainder of their sentences ought to be passed under a system of combined labor, with effectual precautions against intercourse.

II. That this object would be greatly facilitated by the erection of district prisons, at the national cost, for the reception of prisoners under long sentences after they have undergone such previous separate confinement.

III. That such district prisons should be maintained at the national cost, and the government of such prisons, and all appointments and salaries of officers, ought to be under the control of Her Majesty's Government.

Col. Jebb regards these plans with unqualified favor. "If it were only to avoid the inconvenience and expense of transportation," he says, "it is well deserving of attention, especially in an economical point of view."

It seems that lengthened "periods of imprisonment have not hitherto been resorted to, partly from there being no existing prison where sentences exceeding twelve months could be properly carried into effect, and partly, from a sentence of transportation in former times affording so easy a solution of all difficulty both as regarded expense and final disposal." And Col. Jebb expresses the opinion, that "if facilities existed for carrying into effect sentences of imprisonment extending from eighteen months to three

years without expense to the counties and boroughs, a large proportion of the present sentences to seven years' transportation would be changed to imprisonment." Allowing the average sentences to be from two and a half to three years, nine months would be past under the discipline of separation, and from twenty-one to twenty-seven months in the district prison.

As a general conclusion of the whole matter, Col. Jebb copies and adopts the opinion of the Parliamentary committee, that "if conducted under proper regulations and control, separate confinement is more efficient than any other system which has yet been tried, both in deterring from crime and in promoting reformation."

It is quite evident that he is no convert to Dr. Baly's views, for he does not propose to reduce the average term of separation below nine months, within which all the mischiefs of it, (according to the Dr.'s theory or statement,) are experienced. Indeed, if we are not under great misapprehension, Col. Jebb has over and over again expressed his confidence in the principle of separation, when applied to periods varying from twelve to eighteen months.

So far from yielding to a suggestion of relaxation, the present report urges *a uniform system of discipline* in all prisons, and the enforcing of separate confinement alike to the tried and the untried. It endorses the declaration of a committee of the House of Commons, that "the combination of hard labor with individual separation, has been remarkable in its effect to decrease the number of committals." The prison of Leicester is cited as an example.

In one section of the report, the subject of enforcing hard labor is discussed; Lord Denman's remarks are cited, in which he speaks of "the

only legitimate end of punishment being to deter from crime; but I think I perceive,” he says, “in some of the theories of benevolent men, such a mode of administering the criminal law as to encourage instead of deterring. I greatly dread the effect of giving convicts benefits and privileges which they never could have hoped for but from the commission of crime.”

In allusion to this subject Col. Jebb, in his report for the preceding year, suggests whether among “the means of increasing the stringency of the discipline, and bringing it to bear with greater effect on the lowest class of prisoners, and on such as prove to be incorrigible, also on prisoners re-committed to prison, giving them a less comfortable bed for certain periods, or on alternate nights,—might not be desirable. The physical comforts of a prison are of necessity greater than the majority of prisoners enjoy when at liberty; and if, without injury to health, these can be abridged, a more deterring effect will be produced by the discipline, both on the individual himself and the criminal population generally.”

We have often and earnestly contended for a more liberal use of those methods of discipline which apply to the sources or organs of criminal indulgence. Moral diseases have corresponding remedies. No more suitable remedy can be prescribed for idleness and indolence than hard work. Nothing is more irksome to a man given to depraved appetite, than short commons. The difference between a good dinner on corned beef and potatoes, and a ration of bread and water, is felt at points which reproof and the shower-bath, and even the cat-o’-nine-tails, will none of them reach. The former, by itself, will subdue a spirit which the three latter combined will only rouse to indomitable stubbornness.

On the whole, we regard this document as decidedly confirmatory of the views which have been uniformly advocated by the Philadelphia Society for the Alleviation of the Miseries of Public Prisons, and in the pages of this Journal. It contains not a statement nor a tittle of evidence that impairs in the slightest degree our confidence in the safety, efficacy and humanity of convict-separation. That it has been, and may be abused or ill-administered, and that it requires judgment and discrimination to adapt its provisions to the various classes of persons who are subjected to it, is not more true of this than it is of the gregarious or any other system. The only substantial fault that we have ever known to be found with it, is that it costs more than association, and the only answer to be made to this is, that (admitting the statement to be true) it is worth as much more as it costs.

. III.—SOURCES AND CHECKS OF JUVENILE DELINQUENCY.

WHEN the farmer finds his fruit trees exposed to the ravages of the caterpillar, he makes but slow and unsatisfactory work, if he takes the worms one by one as they are feasting on the leaf, or crawling along the stem, or dangling in the air. There is a period of the day, however, when they are all in their nest, and if he can apply a torch to their curious fabric and consume it, or riddle it with shot, or wind it and its wriggling population upon a brush or broom well besmeared with pitch or tar, to be forthwith put into the fire or under the foot, the work is thorough and the tree safe.

Not inaptly does this illustrate, or serve to point out the true process for the diminution of crime. The arrest, conviction and punishment of here and there a rogue, is scarcely felt. It is but a unit subtracted from the appalling aggregate of crime. If we would have the ratio of our criminal population palpably and permanently lessened, we must lay hold of the young ones in the nest, and whatever the trouble or cost, we may rest assured it is by all odds the cheapest and only effectual way of dealing with the pest.

Among the prominent causes of, or excitements to a criminal life which are operative upon childhood, especially in cities and populous towns, have been reckoned 1, and chiefly drunkenness. 2. The absence of education and industrial training. 3. The inadequacy of home-accommodation to secure the ordinary decencies of life. 4. The demoralizing influences of cheap theatres, and other low places of amusement, association with fire companies, and the liberty to dispose of the whole or a considerable portion of their own earnings. 5. The example, instruction or orders of parents

constraining them to vicious acts, and 6, the connivance or co-operation of receivers of stolen goods to prompt them. We might indefinitely enlarge this catalogue, but these causes are adequate to account for the greater part of juvenile crime.

The readers of our Journal cannot fail to be aware of the unusual interest which has recently been awakened on this subject. Our present number contains sundry evidences of it, and by referring to the cover, a notice will be found, the design of which is to provoke inquiry and discussion, with a view to reformatory measures. As human nature is substantially the same all the world over, and as like causes produce like effects, we have transferred to our pages several interesting and important passages from the last report of the inspector general of English prisons, bearing particularly on this subject.

In respect to the first cause of juvenile depravity, which we just commented on, drunkenness—

“Statistical returns show that the amount of money expended in intoxicating drinks of one kind or another in Great Britain, is between fifty and sixty millions of pounds sterling per annum,—a sum fully equal to the whole national revenue.

“Now such an enormous expenditure on any one object must produce a noticeable effect upon our social condition. Were such a sum annually expended on the reclaiming of waste land and the improvement of what is but partially cultivated, and the erection of comfortable dwellings, in a few years our whole island would be a garden of beauty and fertility.

“But what are the results produced?

“The physicians of our lunatic asylums tell us that intemperance is the cause of a large proportion of the cases of insanity.

“The medical officers of our infirmaries and dispensaries tell us that many diseases are caused, and more are made fatal, by habits of intemperance.

“The masters of our poor houses tell us that they can trace the pauperism of most of their inmates to their own intemperance, or to that of their parents.

“The governors and chaplains of our prisons tell us that most of the crime in our gaols is directly or indirectly caused by strong drink.

“If the offences to which habitual drinking has ultimately led could be ascertained, I believe we should find that four-fifths of the recorded offences have sprung from it.”

Although the remedy for this enormous evil is justly regarded as lying to a considerable degree in the hands of educators, it is maintained that “much may be done to abate the evil by reducing the number of licensed public houses both in town and country, and by greatly raising the expense of strong drink.”

As an evidence of the effects of cheapening strong drink, it is stated that in 1825, the duty on whiskey was greatly reduced in Scotland, and that as a consequence, intemperance began to increase, so that “in the twenty-seven years which have since elapsed, the consumption has become nearly *five-fold* greater; crime, disease, and death have increased in similar proportion; and the sober, religious Scotland of other days is now *proved*, by its

consumption of spirits, to be, without exception, the most drunken nation in Europe.”

As to the connection between intemperance and the other causes of juvenile depravity, “the records of the prison-house, if fully analyzed, would show that the *first penny or the first pound* taken by a son from his parents, or abstracted by the young man from his master’s desk, is for the theatre, not for the public-house. But youth, being corrupted by the pleasures of sin, drunkenness follows, and becomes the associate or the substitute of licentiousness, and completes the ruin. Money becomes indispensable, and it is gotten by some desperate and wicked means, at the possibility of which a few months before, the mind would have recoiled with indignation, like that of Hazael, when reproached by the prophet: ‘Is thy servant a dog, that he should do this great thing?’”

In the great majority of instances, it is believed, the only means by which the reformation of such can be rationally expected is by their thorough and permanent severance from those scenes and associations in which their evil habits were formed. Although suffering from hunger and misery, it must not be supposed that the lives led by these delinquent children are void of pleasurable sensations; “the very alternation from one extreme to another keeps the mind in a state of feverish excitement; the want of a penny to buy food on one day, is more than compensated by the reckless profusion of the next; and the despondency created by privation and long suffering is speedily supplanted by exultation on the success of some criminal feat of daring and dexterity.”

None will deny another position of the report, viz.:

“That it is impossible for children to be brought up as Christian children ought to be, when huddled together, male and female, old and young, like pigs in a sty; and yet this revolting expression is not too strong to designate the dwellings of tens of thousands in our land.

“How many of our honest industrious artisans have only one apartment, or, at most, a room and a closet for father and mother, and grown up sons and daughters!

“The physical condition of the poor cannot be viewed as separated from the moral. The want of a proper dwelling place for the working man is one of his greatest trials, and is as injurious to his spiritual as to his bodily health. The crowding together of a whole family in one room weakens domestic virtue, destroys all self-respect, modesty, and delicacy of feeling, and utterly removes all opportunities for self-improvement. A home which is miserable from physical or moral causes is the half-way house to the gin-palace or beer-shop.”

The inquiry might be opportunely raised, whether the *habits* of life which constitute such a social state as is here described, are not formed long before the state itself is entered. A girl or boy accustomed to street-associations either in the pursuit of some trading employment, as selling papers, matches, &c., &c., or from mere neglect and idleness, will soon fall into habits which no degree of loathsome infamy or social degradation will shock. The origin of the evil, in such cases, lies far back of its present stage and locality. It dates from the *childhood* of those who now act as the head of this filthy and brutalized little community.

Of the penny theatres, it is truly remarked, that “they present almost irresistible attractions;” and the annals of juvenile delinquents are full of cases of petty thefts committed in order to procure the penny or twopence required for admission.

Even if the price of admission be honestly obtained, as one of the reports says, the scenes to which the youthful spectator is there introduced are understood to be of the most flagitious and depraving nature, calculated only to inflame the passions, and deaden every virtuous feeling.

Singing-rooms and dancing-rooms, too, are represented as training up boys and girls to familiarity with vice in every shape. A magistrate sent two of his officers to visit one of them. Their report describes seven hundred boys and girls collected together to have their bodies poisoned with smoke and drink, and their minds with ribaldry and obscenity! Can any one have a doubt that the evil wrought in such a singing-room in a single night, outweighs all the good that can be effected by a dozen Sunday-schools in a whole year?

And finally the part played by the receivers of stolen goods is described as a profession.

So much for causes, and now as to remedies. These are emphatically *preventive* in their nature, “lying at the very foundation of our social arrangements, and until very recently, wholly disregarded and uncared for, viz., ‘organized and adequate means for EDUCATION and INDUSTRIAL TRAINING.’”

It is remarkable how many of the prominent features of some of our modern schemes of juvenile reform here, have been long ago presented to

the public eye. More than half a century ago, (1796) the renowned Earl of Chatham introduced to the British Parliament a bill, which had for its object the establishment of a school for work in every parish or incorporated district, for the purpose of instructing the children in different trades and manufactures. The parishes were to be at liberty to maintain their poor children in the working schools, or to lodge them there or keep them only during the hours of labor, and then feed them there or give them work to do at home. The overseers were to be charged with the direction of these schools, and were required to supply them with materials and utensils, &c. Parents burdened with infant children, and in the receipt of out-door relief, were required to send their children to the working school as soon as they were five years old, to be instructed and maintained there. It was provided that those fathers who might prefer to keep their children at home, should bring them up and employ them, receiving some direction and assistance from the local authorities until the children were in a condition to gain their livelihood. Upon leaving the working school, those children who could not return to their families were to have been apprenticed at the expense of the parishes, or provided with some means of service.

It has long been our conviction, as the volumes of this Journal will show, that no very radical reform of the vicious children and youth of the land will be accomplished, so long as the government is so reluctant to enforce parental obligations, or to take upon itself all due attention to such obligations in those points where the welfare and safety of society are put in jeopardy by the disregard of them. Though our institutions are based on a principle of the utmost liberty, they are, for that very reason, peculiarly dependent on the proper education and training of children for their preservation. No country on the face of the globe has so much staked on the intelligence, industry and virtue of each succeeding generation as ours. We

are fully satisfied that the timidity which our government manifests in laying fast and earnest hold of this great evil, PARENTAL NEGLECT, exposes us to the loss of all that is worth preserving.

“Society has surely the right to guard itself against the evil practices of those neglected children; and, having the right, it ought also to have the power; but if such power exist, it seems very difficult to tell in whose hands it is vested. The child convicted of theft is whipped or imprisoned, but if he stole to appease the cravings of hunger which his worthless parent failed to satisfy, it is clear that chastisement has not fallen upon the proper party, and that the really guilty has profited by the vices prompted by his culpable neglect, while the whole cost has been defrayed by the public.”

“Power must be given,” says our report, “to send to school all *neglected* children—all found loitering in streets and lanes—whose parents take no charge of them, but leave them to grow up as they may, untutored and untaught, save in the practice of crime. If the parents neglect to perform their bounden duty, then the State may properly step in, *loco parentis*, and do the needful work; and surely this is no unjustifiable interference with the parental authority—it is only saying to the parent, ‘if you will not discharge the duty you owe to your child, both in the sight of God and of man, we, the public, will do it for you; we will not suffer your child to grow up a torment to himself and to all around him; we would much rather you did your duty yourself, but if you *will not*, then *we must*.’

“By law, the burden of uncared-for pauper children falls at present on the workhouse, but the poor-law authorities are not

entitled to expend their money, unless under their own immediate control; and power must be given to them to do so, through the medium of industrial school managers. This will be as advantageous as it is economical. Better for the public, who must eventually pay in one form or other, to maintain the child in an industrial school at 4*l.* a year, than in a poor house at 10*l.* or 12*l.*, especially as the smaller expenditure gives every prospect of making him a useful member of the community, and the larger gives little hope of ever raising him above the pauper class.

“A good education,” says one of the inspectors of the English National Schools, “so infallibly dispauperises, and raises its recipient above the necessity of ever again applying for relief, that except under gross mismanagement of the guardians in other points, we may be tolerably certain that vicious habits, easily eradicable by sound early training, have brought the great majority of those who burden the parochial rates to their state of dependence. Could this truth be more universally impressed on the managers of the poor, the difficulties in the way of forming industrial schools would vanish!

“It was said by the late stipendiary magistrate at Liverpool, that he had ascertained that ten such children, under fourteen years of age had cost, in apprehension and imprisonment, upwards of six hundred pounds; and, with so little effect, that all of them were then in prison, and one, only about ten years of age, lay under sentence of transportation for seven years.

“The remedy for these enormous evils appears simple and obvious. Let the committee or the magistrate be empowered to

send all such mendicant children to the schools of industry at the expense of the parent or the parish, and let the worthless parent be punished if he neglects the sacred duty of maintaining his child, which at present he is allowed to do with impunity.”

We think the friends of our Houses of Refuge could scarcely ask a more sensible and cogent argument in support of such establishments, than is furnished in these brief extracts; and yet cogent and sensible as it may be, it fails to convince gainsayers, or at least, to constrain them to prompt and liberal action. Within a twelvemonth a project for such an establishment was lost in a neighboring State, (as it was alleged,) in some political whirlpool; and the public prints tell us, that a like wholesome measure was lately defeated in St. Louis by the jealousy or arrogance of a religious party. We do not vouch for the truth of either of these statements, but we hazard nothing in saying, that the problem, how to restrain and suppress crime, will never be solved, till politicians and religionists lose their selfishness and their bigotry in an earnest and efficient effort to provide for vicious and neglected children.

The following good old Saxon principle is adverted to in a report on Parochial Union Schools for 1851.

“Guardians are not always so open to considerations of ultimate as of immediate economy; and many a pauper who now, before his death, costs his parish one or two hundred pounds, might have lived without relief, had a different education, represented perhaps by the additional expense of a single pound, been bestowed upon him in his youth! This is strictly retributive justice; and I think it would be good policy to increase its effect, and it would give a prodigious stimulus to the diffusion of

education, if the expense of every criminal, while in prison, were reimbursed to the country by the parish in which he had a settlement. What a stir would be created in any parish by the receipt of a demand from the Secretary of State for the Home Department for 80*l.* for the support of two criminals during the past year! I cannot but think that the locality where they had been brought up would be immediately investigated, perhaps some wretched hovels, before unregarded, made known, and means taken to educate and civilize families that had brought such grievous taxation on the parish. The expense of keeping criminals, as of paupers, must be borne somewhere; and it seems more just that it should fall on those parishes whose neglect has probably caused the crime than on the general purse.”

We would gladly pursue the discussion of these interesting topics did our limits allow, but we have indicated one important, and as it seems to us indispensable preliminary inquiry, viz.: Can we effectually carry out any general scheme of reform, except we withdraw neglected and vicious children from the associations and habits of their miserable and degraded homes, and put them upon a course of involuntary moral and industrial training, before they become what are technically called juvenile delinquents? Is not a compulsory process (much earlier in its application than the discipline of a House of Refuge) essential to the accomplishment of any general or comprehensive reform? Will such a process be authorized by any popular legislature in our country? If the question implies an answer, is the answer true?

. IV.—PENNSYLVANIA PENITENTIARIES.—

Twenty-Fourth Annual Report of the Inspectors of the Eastern State Penitentiary of Pennsylvania, dated January 1, 1853, pp. 36.

Report of the Inspectors of the Western Penitentiary of Pennsylvania, dated January 10, 1853, pp. 24.

THESE two documents embrace the details of the convict-discipline of the State of Pennsylvania for the year 1852. It is well known that both the institutions are established on one and the same principle, and are administered, so far as the discipline is concerned, under one and the same law. It may not be uninteresting to review them briefly in connection.

	E. State Penitentiary.					W. State Penitentiary.					Grand Total.
	Whites.		Blacks.		Total.	Whites.		Blacks.		Total.	
	Male.	Female.	Male.	Female.		Male.	Female.	Male.	Female.		
On hand January 1, 1852,					310					174	484
Received during the year,	109	4	12	1	126	84	1	10	1	96	222
In custody at date of report,	219	12	48	4	283	165	3	18	1	181	470
Disch'd by exp. of sentence,	56	5	28	8	92					56	148

Disch'd by pardon,	40	2	2	1	45					24	69
Disch'd by death,			2		2					3	5
Removed,	12		2		14						

In the Eastern State Penitentiary, the labor of the prisoners has nearly defrayed the expense of their subsistence; while in the Western State Penitentiary, the labor of the convicts has not only earned their support, but has paid four-fifths the salaries of the officers.

The number of commitments to the Western State Penitentiary has increased so much, as to require the erection of a new range of cells—for want of which in the crowded state of the prison, the required separation has been in some cases impracticable. But no departure from the strict observance of the discipline has been allowed, except where a necessity which knows no law, required it.

If it should be supposed that the apparent increase of crime betokens the inefficiency of the discipline, it would be an unwarranted inference. The increased number of convictions might tend to show the increase of crime, or of sagacity and thoroughness in detecting and prosecuting it; but there is another and abundantly adequate cause to account for the increase in the present case, and it is the one assigned by the inspectors, viz.—the intemperate use of intoxicating drinks. Of the ninety-six received during the year, eighty-nine are regarded as having been brought to the felon's home by such indulgence! Of one hundred and twenty-six received into the Eastern State Penitentiary during the year, only thirty-two are registered as

temperate, leaving ninety-four on the list of drinkers, moderate or immoderate.

Of the one hundred and twenty-six admissions to the Eastern State Penitentiary, ninety-eight were never apprenticed to a trade; and of one hundred and eighty-seven in custody at the Western State Penitentiary at the date of the report, forty-one were never bound; and of the one hundred and forty-six that were bound, ninety-seven (or two-thirds) ran away from their masters!

Among the 126 admissions to the Eastern State Penitentiary, there were fifty-six different trades or occupations, and of thirty-eight of these only one representative. The largest of any class were laborers, 27; the next, boatmen, 10; shoemakers, 7; and store-keepers, and farmers, and butchers, 5 each. Of the 187 in custody at the Western State Penitentiary at date of report, 67 were laborers, 18 shoemakers, 12 boatmen, of farmers and blacksmiths 6 each, cooks, 5.

The Warden of the Eastern State Penitentiary gives us, as the result of another year's experience, an increased conviction of the unabated confidence and regard to which the system of separate confinement is entitled; and the Warden of the Western State Penitentiary speaks of the success of the past year "as having proved the separate system to be what its earliest friends desired."

In the report of the medical officer of the Eastern State Penitentiary we have the following testimony:

I think I may state without hesitation, that there has never been, during the history of the institution, so great an exemption from

disease for so long a time, as during the period for which I now report. There are but four men in the Infirmary who are not at work. It is true, there are some others in delicate or infirm health, but the greater part of these were received in that state, of whom again the majority are greatly improved.

And from the medical officer of the Western State Penitentiary we have a similar report of the uniform prevalence of good health. There has been less indisposition within the prison during the year just terminated, he says, “than during any similar period of time since my professional connection with this institution, and yet the number of prisoners has never been so great.”

As to the mental health of the convicts in the Eastern State Penitentiary, the physician reports it to be “no less satisfactory than their physical condition;” and of the Western State Penitentiary the medical report is, that “no case of insanity has originated within the prison during the year.”

Of the sentences of the one hundred and twenty-six admitted, ninety-one were for three years or less. And of ninety-six received into the Western State Penitentiary, seventy-five were sentenced for three years or less.

Of the one hundred and twenty-six commitments to the Eastern State Penitentiary, ninety-six were for offences against property, only seven of which were accompanied with violence; twenty-five were for offences against the person, and five for violation of marriage laws. While of the ninety-six admissions to the Western State Penitentiary, eighty were for offences against property with and without violence, and sixteen were for offences against the person. The general summary of the two Institutions is as follows:

	East. State Peni.	West. State Peni.
	23 years.	26 years.
Of the whole number received, there		
were disch'd by expira'n of sentence,	2005	1061
Pardoned,	422	305
Deaths,	230	81
Removed,	31	4
Escaped,	1	10
Remaining December 31,	283	187
	-----	-----
Total,	2972	1648

A very slight examination of this statement reveals some singular differences, especially in the items of pardons and deaths, which an analysis of the annual returns would doubtless satisfactorily explain.

The moral instructor in the Eastern State Penitentiary adverts to the circumstance that only nineteen of the one hundred and twenty-six commitments were over thirty-five years of age, and that twenty-eight were under twenty. He very justly regards the ignorant, vicious and depraved YOUTH of the land as the reservoir of convicts. The moral instructor of the Western State Penitentiary says, "there is a larger proportion of mere youths in the prison than at any former time. More than three-fourths of the prisoners confined within these walls have confessed to me that their early youth was passed almost entirely without moral teachings. The records of our Courts bear ample testimony to the fearful and distressing increase of crime among our youth. There are in this prison, received within the past year, nineteen convicts not over twenty-one years of age!"

These considerations show the seasonableness and importance of a proposition from the Managers of our House of Refuge, which will be found on our last page.

A large section of the report of the inspectors of the Eastern State Penitentiary is occupied by a discussion of the provisions of the Act of Assembly of May 4, 1852, and the proceedings under it, to which we shall make more particular reference in a separate article.

V.—SHOULD CONVICTS BE RECEIVED INTO THE STATE LUNATIC HOSPITAL AT HARRISBURG?

THE General Appropriation Act of 1852, provides \$25,000 to complete the unfinished range of cells of the Western State Penitentiary, and for the payment of gratuities to convicts discharged from the two penitentiaries, \$1417, viz.: \$667 to the Eastern, and the remainder (\$750) to the Western. Then follows §42. “That the further sum of ten thousand dollars be and the same is hereby appropriated to the Eastern State Penitentiary, for the purpose of grading, curbing and paving the street adjoining, preserving the buildings from decay, and altering and repairing a part of them for the suitable accommodation of prisoners whose mental or physical condition requires, in the opinion of the inspectors, a temporary relaxation of the separate confinement system. Provided, That whenever in the opinion of the inspectors of the Eastern State Penitentiary, any of the prisoners therein confined shall develop such marked insanity as to render their continued confinement in said Penitentiary improper, and their removal to the State Lunatic Hospital necessary to their restoration, it shall be the duty of the said Inspectors to submit such cases to a Board, composed of the District Attorney of the County of Philadelphia, the principal physician of the Pennsylvania Hospital for the Insane at Philadelphia, and the principal physician of the Friends’ Insane Asylum at Frankford in Philadelphia County; and in case a majority of them cannot, at any time when required, attend, a competent physician or physicians, to be appointed by the Court of Quarter Sessions of the County of Philadelphia, in the place of such as cannot attend, upon whose certificate of insanity, or the certificate of any two of them transmitted to the Governor, and if by him approved, he shall direct that said insane prisoner shall be by said Inspectors removed to the

State Lunatic Hospital, there to be received, safely kept and properly provided for, at the cost and charge of the county, from which they were sent to the Penitentiary, and if at any time during the period for which any such insane prisoners shall have been sentenced to confinement in the Eastern Penitentiary, they shall, in the opinion of the trustees of said Lunatic Hospital, be so far restored as to render their return to said Penitentiary safe and proper, then the said trustees shall cause the said prisoner to be returned to said Eastern Penitentiary, due notice being given to the clerk of the Court of Quarter Sessions of the County, from which such prisoners were sent to the Penitentiary, of all such removals or transfers.”

In pursuance of the authority enforced by this law, the commissioners met at the Penitentiary on the 20th of October last, and at various times thereafter, and examined eighteen cases presented for their investigation—eight of whom they regard as proper subjects of hospital treatment; two, they think, will be as well or better off where they are; the sentence of one expired during the pendency of the proceedings, and he was discharged, four are not suitable inmates of an Insane Hospital, and three, who were committed for safe keeping, are regarded on all hands as unfit to be placed in any hospital, or elsewhere where the means of close custody are less efficient than in the Eastern State Penitentiary.

In the course of their report to the executive, the Commissioners very properly speak of it as a grave question, how far it is justifiable to mingle convicted criminals (however afflicted) amongst the meanest whom the hand of God has visited with mental derangement, or how many insane criminals can be sent there without seriously jeopardizing the best interests of that institution, and risking the safety and well being of its inmates. They

add, “that no wards can be specially appropriated to the class particularly under notice, and as a consequence the insane criminal must be in contact directly with the insane innocent.”

In the absence of a hospital constructed with exclusive reference to the custody and treatment of convicts deprived of their reason, and considering “the great security afforded by the penitentiary and the character of its arrangements,” the Commissioners are of the opinion, that “it will be quite possible, inside its enclosure, to make the limited number of this class now confined there, more comfortable than they could be in any ordinary hospital, for the reason, where a just regard to the safety of others would require a much closer degree of confinement,” in which opinion we cordially coincide.

As this is the first proceeding under the provision of the law, it has received particular attention in the report of the Inspectors, and may claim a brief notice in our pages.

And we must in the first place take exception to the phraseology in a clause of the Act of Assembly, which is open to misconstruction. “A certain class of prisoners” is mentioned, “whose mental and physical condition may require, in the opinion of the Inspectors, a temporary relaxation of the separate confinement system.” The framers of this paragraph were probably unaware that all the provision which any body ever considered necessary for the class of prisoners alluded to, may be enjoyed without any “relaxation (temporary or permanent) of the separate confinement system.”

It is the *unbroken solitude* which, by an existing law, should be relieved two or three times a day, but in some past periods has not been relieved for days together; it is the confinement to an unwholesome or stultifying trade;

it is the brooding over a seven or ten years' sentence, a ruined and helpless family, and a blasted reputation,—these are the causes, and not *separation* from other convicts that threaten to undermine the health and derange the reason of convicts of a peculiar temperament. Now, if the money appropriated could be expended in a few extra lodges, with ample exercising yards, and perhaps one-tenth of it for an additional attendant or two, to have charge of enfeebled prisoners (whether they were so when admitted, or became so as a natural effect of prison-life) this provision of the section would be very reasonable. The *separation*, however, may safely and should certainly remain intact.

But there is another class of convicts whose case is embraced by a *proviso*. It is those who “develope such marked insanity as to render their continuance in the penitentiary improper, and their removal to the State hospital necessary to their restoration.” In order to determine whether a convict answers to this description, a competent Board is appointed to examine and report.

Now we will suppose a case is presented of a prisoner who was committed for *safe keeping* merely. This is certainly not a case within the *proviso*. No matter how marked the insanity is, it was developed before commitment, and his continued confinement is, therefore, in no sense “improper.” Competent authorities disposed of him with due reference to all the circumstances of the case, and the Act of the Legislature is not designed to disturb the acts judiciary.

Another case is presented to the Board, and they are satisfied that it is a “manifest” development of insanity, but that with proper medical treatment, and such out-of-door exercise as is quite compatible with the discipline of

the institution, the party may be restored. This is clearly not within the proviso, for it is only such cases as make “*a removal to the State Hospital necessary to their restoration,*” that are to be transferred. It is evident, therefore, that the medical Board are not to be restricted to the inquiry, whether there is or is not a development of insanity, but whether the case presented is one which the proviso meant to include. The medical Board are presumed to know the provisions of the act from which they derive their authority, and they cannot read it without perceiving that they are to decide not only whether a prisoner is insane, but also whether his insanity is of such a type or character as to render his continuance in the prison *improper*, and a removal to the State hospital indispensable to his recovery. Now, suppose they are satisfied of the insanity, and also that his removal to the State hospital or elsewhere would not be likely to restore him. This is the very point for which their professional knowledge and experience is required—quite as much as (if not more than) to determine the naked question of insanity. Surely a wise Legislature could not have meant to ask a *medical Board* to determine the question of insanity, and leave it to the *Inspectors* to say whether the insanity might be safely and properly treated in the prison, or whether a removal to the State Hospital would be likely to issue in restoration!

On the whole therefore it must be obvious, we think, to any candid mind, that the Legislature designed to give the Inspectors the benefit of the *official judgment* of a competent Board, as to the manner in which they should treat or dispose of insane convicts.

Upon the general question of the removal of any insane convicts to the State Asylum, we indicated an opinion in our number for July, 1852, and

farther inquiry and reflection confirms the doubt then expressed, whether a general State Lunatic Hospital should receive convicts of any class.

If an offender has been convicted and sentenced according to law, he must be regarded and received into the cell as a suitable subject of convict-discipline. A process of law so terminated, is tantamount to incontrovertible evidence, that the party is in all respects amenable to the penal sanctions of the law. Otherwise he is not a convict, but an oppressed and abused sufferer. Having thus been committed, he must abide the life of a convict. If his health fails, humane provision should be made for him in a proper apartment, called an infirmary or hospital, with proper attendance, medicine, nourishment, &c., but why should he be pardoned, removed or discharged? Sickness in prison is one of the risks he voluntarily takes in committing the offence. If he breaks a limb or loses an eye, it is what happens to honest men as well as convicts, and he can claim no exemption from such calamities, and must be satisfied with prison fare when they overtake him as a convict. Why should the failure or loss of mental soundness be a cause of discharging a prisoner, any more than the weakness or maiming of the body? Why should not provision be made within the prison-bounds for the proper care and treatment of this class of ailments, as well as any other? Certainly not because it is not practicable to do it, for the medical records show that the recoveries among convict-lunatics here and in England, bear quite as high a proportion to the cases, as in our best Insane Asylums. If it should be maintained that the proper room and attendance cannot be obtained, the same reason might be urged for discharging the sick and lame, that there was no room for an infirmary, nor for surgical operations, nor for nurses, &c. We do not see what reasonable ground can be urged for the removal of the former, which might not be quite as tenable in relation to the latter.

It seems to us that when the Commonwealth, whose peace and dignity have been violated by a breach of the law, seizes on the offender, and separates him from honest citizens, clearly proves his guilt, and commits him for punishment to hard labor in the penitentiary for a term of months or years, nothing should avail to discharge him from that sentence, except the discovery of some evidence of its injustice. It is assumed, of course, that he has been legally and fairly dealt with in the whole process of the prosecution, and that the sentence is as light as the law or the circumstances of the case will justify; and this being conceded, we confidently maintain that the State takes him into her custody as a convict, and that, as a convict she is bound to provide for him whatever he needs, whether in health or sickness, in strength or weakness, in life or death, until he has accomplished his full term.

We venture to make these suggestions the more plainly, because we perceive not a little confusion in the views which are gaining ground on the subject.

In the recent report of the Inspectors of the Eastern State Penitentiary, cases are mentioned of prisoners who were clearly insane when first sentenced to the Penitentiary. How this fact was proved in any case, does not appear. The question would be relieved of much embarrassment if it did. But the report hazards another and much graver remark, viz: that the “experience and observation” (of the Inspectors) “have convinced them that the commission of crime is more frequently connected with mental disease than courts or juries suspect.” We had supposed that the danger, if any, was in the opposite direction. It must be very rare, we apprehend, that the plea of insanity is not urged where there is the slightest pretence to sustain it.

And courts and juries, in our country at least, have been regarded as quite sufficiently indulgent towards it whenever it is urged.

It is scarcely safe, as it seems to us, after conviction by due course of law, to go behind the proceedings and attempt to avert their legitimate consequences by alleging the existence of a fact which should have stayed them entirely. That property is taken, mischief committed, and violent deeds done by persons of insane mind and of course irresponsible for their acts, we all know; but these acts are not offences, nor are the perpetrators of them offenders, nor can they, by any process of law, be turned into convicts. Yet the time to show this (if it is not plainly apparent) is when they are arrested for such acts, and their state of mind is relied on to exempt them from any responsibility. If it is not shown then, it is our duty (in ordinary circumstances) forever after to hold our peace.

It is not our province to vindicate the established tribunals of the country from the charge of “presumption” or “inhumanity,” when they direct a maniac, who, in a paroxysm of his malady, has taken the life of his wife or his friend, to be confined within the cells of a penitentiary as one dangerous to society. But we suppose the community has a claim to be protected against the violence of the lawless, whether they are rendered so by the visitation of God or by the indulgence of depraved and malevolent passions.

That this protection can be made sure by existing arrangements in our State Hospital, or that adequate provision can be made therein without injuriously affecting the interests of third parties, we are not prepared to say. But we are well persuaded that proper provision for all classes of convicts, whatever their physical or mental condition, can be made in either of our State Penitentiaries; and we shall not cease to consider those institutions

very imperfectly constructed or organized, so long as such provision is not made within their walls.

Before our readers pronounce judgment on these views, we trust they will take sober thought and established facts into their counsels.

While these sheets were passing through the press, we were favored with the report of the New York State Lunatic Asylum at Utica, for the current year, in which the most emphatic remonstrance is made to sending thither persons acquitted of crime, on the ground of insanity, or convicts who become insane. The reasons are plainly stated:

These unfortunate persons are discharged from punishment and committed to the asylum. The buildings not having been designed for the custody of this class of the insane, they cause much extra expense, watchfulness and care; and as experience shows, with but little prospect of benefit. The number is constantly increasing and encroaching upon space which might be more usefully devoted to patients who are likely to be improved, and for whom the institution was originally designed. Many of the class referred to are of the most depraved character, and quite unfit associates for the other inmates, who, for the most part, are persons of worth and respectability, and entitled to be protected against dangerous associations.

The mischiefs which are so clearly exposed by the Managers, are still farther exhibited in the report of the principal physician, who regards convict-lunatics as requiring more secure fixtures and stricter surveillance than ordinary patients, and for these and the worst class of drunkards, he recommends “the erection of a hospital for two hundred and fifty patients of

the male sex only, to be carefully constructed, and fitted for the ultimate occupancy of lunatic criminals only; but to be used, until needed exclusively for this purpose, by criminal and homicidal lunatics and drunkards.”

We think these views and suggestions must commend themselves to all reflecting minds, and we hope to see them carried out.

We offer no apology for occupying so much of our limited space with this subject, inasmuch as the interests of *philanthropy* are involved in protecting our State Lunatic Hospitals from being prejudiced by the introduction of patients who do not properly fall under their care, and the interests of *prison discipline* require that the convict should not be released from any measure of retribution for his offence, which a lawful sentence imposes.

VI.—REPORT OF THE CONDITION OF THE NEW JERSEY STATE PRISON.

—Embracing the reports of the Joint Committee, Inspectors, Keeper, Moral Instructor and Physician. January 19, 1853. pp. 48.

WE have been favored with the report of this institution for the year 1852-3. There were in confinement, at the beginning of the year, two hundred and seven. Received during the year one hundred and twenty-one, and in custody in the course of the year three hundred and twenty-nine different individuals. Of these, sixty-eight were discharged by expiration of sentence, and nearly the same number (viz. 63) by pardon! One death occurred, leaving one hundred and ninety-seven prisoners on hand at the close of the year. The average monthly population of the prison was two hundred and ten, which is a large increase on the previous year.

Of the one hundred and ninety-seven on hand, seventy-two are in on a sentence of five years or upwards; thirty-four for three years and upwards, forty-eight for between one and three years, and forty-three for one year or less. Of the whole number thirty-eight were under twenty; eighty-one between twenty and thirty, and forty-nine between thirty and forty; showing that one hundred and sixty-eight out of the one hundred and ninety-seven, or FOUR-FIFTHS, were under middle life.

The offences are divided about equally between those against property and those against the person. Of the latter the extraordinary number of fourteen are for rape, and five for an assault with intent to commit that crime, and fourteen were counterfeiters. Eighty-nine, or nearly half the convicts, are natives of New Jersey; sixty-three are of foreign birth. Only

eight females are in the prison, four white and four colored; and of the one hundred and eighty-nine males, forty-nine are colored. It is worthy of observation, that of one hundred and twenty-two commitments last year, sixty, or about one half, had no trade!

In respect to the physical health of the convicts, we are informed that only one death occurred during the year, and this was by suicide. It was a young German, who had been in prison only five days, and whose sentence was only six months. We do not learn that any one at Trenton ascribes this melancholy event to the effect of convict-separation, but it would be in keeping with the spirit which has sometimes manifested itself in discussions of this subject, to set it down as one of the fruits of the separate system!

The State Prison of New Jersey is established on the principle of individual separation. The law provides, that “every convict shall be confined in one of the cells of the prison, separate and alone, except in such cases of sickness as are by the act provided for.” That is, if the physician reports to the keeper that a prisoner requires a nurse, the keeper, with the approbation of the acting Inspectors, may employ one of the prisoners; and “whenever, in the opinion of the physician, the enlargement of any prisoner shall be absolutely necessary to the preservation of life,” he may be removed from his cell, “but the prisoner shall in every such case be kept from the society of other prisoners, except such as may attend as nurses.”

No language could more clearly express the will of the Legislature that convict-separation should be the basis of the discipline. In addition to these positive requirements, the Inspectors are to embrace, in their annual report to the Legislature, “such remarks and statements respecting the system of *separate confinement* and the efficiency of the same, as shall be the result of

their own observation.” The same act authorizes them to make rules and regulations for the prison as they may deem necessary and proper, “*consistent with the principle of separate confinement* and the laws of the State.”

Now we might naturally suppose that a body of law-makers, receiving such a report of the condition of a body of convicted law-breakers, from those who are appointed to take care of them, would be slow to countenance any direct and palpable breach of the law by themselves; and yet it must have been known to the Legislature of New Jersey that the provisions of the law establishing the State prison, are rendered entirely nugatory by their neglect to provide means for executing them. They are supposed to know that the prison contains but one hundred and ninety-two cells, and that ten of these are occupied for workshops and store-rooms. A brisk walk of five minutes would supply the honorable the Legislature with demonstrative evidence that one hundred and eighty-two cells would not suffice for the separate confinement of two hundred and thirty-two prisoners, and hence they would see fifty cells (7½ by 16 feet) occupied by two tenants each, against the peace and dignity of the Commonwealth (which has forbidden such association) and of course “against the form of the statute in such case made and provided.”

In such an emergency, we might further suppose that measures would be adopted at once to enlarge the accommodations and to obviate the alleged necessity for thus openly violating the law, as early as possible. With this impression, we are surprised that the Executive of the State, whose particular function it is to see that the laws are duly executed, does not urge prompt action in the premises. So far from any intimation of this sort, he speaks of the administration and management of the prison throughout, as

eminently successful and commendable; of the keeper and officers as having sustained their reputation for ability and efficiency—of *five thousand dollars* of surplus earnings as having been paid into the State treasury during the year—and of about *two thousand dollars* paid to discharged convicts for overwork, all which he thinks exhibits unexampled prosperity in the affairs of the prison.

He even goes so far as to say, “*that the discipline has been well maintained,*” adding (rather paradoxically we think,) that the “large number of prisoners renders it impracticable to observe the law in relation to solitary” (separate) “confinement, and the necessity of association impairs to some extent the corrective regulations of the institution.”

We humbly submit that it is not the “necessity of association,” but the association itself that does the mischief, and farther that Jersey men would better understand the case if it were said in plain English, that until cells enough are built to give each convict a cell by himself, the occupants will be more likely to become worse than better, at the expense of the State, and in deliberate violation of its positive laws.

This view of the case becomes quite imposing, when it is considered that of the one hundred and ninety-seven convicts, one hundred and sixty-eight are, or about four-fifths, are in on a first conviction. Of course, every precaution is essential to give the discipline of the prison its most benign and efficient influence. It is passing strange that an enlightened State should pocket five thousand dollars of the surplus earnings of her convict-population, while the accommodations for accomplishing the only legitimate objects of the prison are so narrow as to require a constant violation of the law, and a constant defeat of its wholesome ends. It may be,

however, that to violate laws has become the rule, and to obey them the exception. As an illustration, it may suffice to say, in respect to this same New Jersey State Prison, that the use of tobacco in any form is peremptorily forbidden by law; yet we are informed, on indisputable authority, that the prisoners both chew and smoke, and that some of them have taken their first lessons in these arts after their admission to the prison!

We have made these suggestions with much freedom, and we hope without offence. We have hearty, intelligent co-adjutors in Jersey, who are aiming with us to establish the convict-discipline of the country on a truly humane, efficient, philosophical and Christian basis. To this end, we maintain that every prison or place of confinement for persons charged with or convicted of crime, should furnish a suitable apartment for each individual, separate from every other individual suspected or convicted of crime. We have often cited the State prison at Trenton as one of this class, and have uniformly espoused the views of the Inspectors and principal officers, at times when they were opposed by crotchety speculators within or without the prison; and we shall be greatly disappointed, if means are not promptly used to conform the discipline to the provisions of law.

. VII.—AN EXTRAORDINARY DOCUMENT.

WE have before us a stitched pamphlet, entitled “Report on the Subject of Prisons, by Rev. Alexander L. Hamilton, State Commissioner, to Hon. Austin King, Governor of Missouri—Referred to the Committee on the Penitentiary, and three thousand copies ordered to be printed, January 5, 1853,” pp. 24.

The author of this report is, we doubt not, a very worthy and intelligent gentleman, or he would not have been appointed by the Executive of Missouri on so important an agency. That he has fulfilled his mission to the best of his ability, we may also admit; but that his report contains “such information as is necessary to present the subject of Prison Discipline fully to the consideration of the next general assembly of Missouri,” we cannot believe. Indeed we do not hesitate to say that it is entirely deficient in every point that a report on such a subject, for such a purpose, should embrace.

Statements are made, which have been disproved over and over again, until the repetition of them is loathsome to those who have been familiar with the subject. Principles are set forth as of present validity, which have been long ago abandoned even by those who once advocated them. The most ultra partisan opinions and doctrines are revived, with such an air of sincerity and confidence, as leads us to believe that the Rev. Commissioner never saw or heard of the oft-repeated refutation of them. He refers to those whose minds are steeped in prejudice, as the most reliable and responsible sources of information; and perhaps we cannot better describe the document, as a whole, than by saying that it is a synopsis of the reports of

the Boston Prison Discipline Society and Mr. Gray's book, prepared and printed at the expense of the State of Missouri.

We owe it to ourselves to cite a passage or two from the report, to serve as an indication of the qualities we have mentioned.

As to its rhetoric and logic let the following suffice:

The conviction forces itself upon my mind, that, if the numerous weighty objections already given be correct—this (the separate) system is not only wrong *per se*, but will soon be deserted by its remaining followers. For if it be true, when alluding to it in the least objectionable manner, that this system is only suited to short sentences, as many of its friends and advocates aver, then, “to all intents and purposes,” it must soon be subject to one of two consequences; either the penal code of the laws of the land must be so altered as to suit the demand of the system, or the system must be so altered as to fully come within the demands of the law.

As to its facts let the following suffice:

Upon the separate and solitary principle, the prisoner—good, bad, or indifferent as he may be, surrounded by his *Bible*, and such other good books as are given him from time to time, remains all alone in his cell, from the first of January to the last of December, until his term of imprisonment expires; and is thus left to his own reflections by day, and by night—unless paid an occasional visit by some kind officer of the prison, or by the chaplain. And hence it is, that in too many instances to justify the means employed, *insanity* precedes the work of reformation.

Were we to cite but a single passage from the report to include the logic, the rhetoric, the philosophy, the facts, and the reliability of the statements in a single view, it would be the following:

Upon my arrival in the city of Boston, Massachusetts, so soon as I had visited the State prison at Charlestown, and the Boston new jail, under the guidance of Hon. Louis Dwight, I was convinced in my own mind that said jail, for the purposes for which it was designed, was decidedly the *model prison of the age*.

The commissioner was so fortunate as not only to see “the model prison of the age,” but to obtain from the same source “a design of a model prison for the State of Missouri;” and so comprehensive and clear were the conceptions of the commissioner upon the view of these model edifices and plans, that he made up his mind when he “first saw the design,” (and his views remained unchanged after his return,) “that it has no superior either in the United States or in Europe.”

Among the inexplicable mis-statements which we find scattered through the report, we may cite the following:

As has been proven, beyond all successful contradiction, this system (the congregate) is not only *more humane*, but it is also *far less expensive* than the separate system.

Nothing is more obvious than that from the very nature of the discipline, the administration of a prison on the separate plan must be the least expensive. The first cost of the structure will probably be greater; but we have supposed it to be conceded on all hands, that a prison on this plan once

erected, the expenses of maintaining it were much less than those of a congregate prison with equal accommodations.

While we admit that the first cost of a prison for convict-separation is greater than that of a congregate prison, we must demur to the Rev. Commissioner's broad assertion on this point:

“I speak not unadvisedly,” he says, “when I assert, that the erection of a prison for associate purposes, is not half so expensive, as the erection of a prison for the separate and solitary confinement of its inmates—all things considered.”

The most zealous opposers of the separate system have not pushed this objection to any such extreme, and to any considerate mind it carries its refutation with it.

As an inducement to proceed on the plan submitted by the commissioner, he assures the executive that “the prison once completed and properly officered, unless in case of some unforeseen accident, will demand of the State treasury nothing more for at least fifty years! And more than that,” he says, “after paying for itself during the first few years of its existence, it will thenceforth yield annually a handsome revenue to the State.”

The cost of the Missouri “Model Prison” is set down at \$250,000, and as a sort of guaranty against any new expense for improvement in after times, the commissioner has the assurance of one gentleman, (which another promptly endorses,) that “the principles of the main building are such as will last for one hundred years!” This gives a chance for a long nap to our Boston friends.

We are not without hope that some of the good citizens of Missouri will get a glimpse of this report of the Rev. Alexander L. Hamilton, and will insist upon a more intelligent and impartial inquiry, before they commit themselves, or suffer the Legislature to commit itself to so large an expenditure, for an institution so permanent, and involving so many interests of humanity and public economy.

. VIII.—A PHILANTHROPIC PERPLEXITY.

WILL the publishers of the *Prison Journal*, or some one who has access to its columns enlighten an honest inquirer after the path of duty? It is presumed that the combined wisdom and philanthropy of the Prison Society can furnish all needed direction in the case I have at heart and in hand.

Of the grave and multiplied evils that spring from *street begging*, I have no doubt. Indeed I have done all I could in a private way to discountenance it. I have never encouraged a second call by a liberal donation, and perhaps have sometimes seemed harsh and unfeeling. But I am so well satisfied that it is the most inhuman thing we can do for the honest poor, and that it favors the arts and schemes of the dishonest, that I feel constrained to avoid every thing that should look like countenancing it. My neighbor's gate and door are daily besieged by women and children with boys and baskets, and they seldom leave without some token of approval.

But I must hasten to a statement of my case. I was going to my place of business on Saturday afternoon, after dining heartily and happily upon a rare sirloin of beef, and saw a man on the door-steps of a house in Washington Square. He was perhaps forty years old, (more or less) rather shabbily dressed, with a dirty bundle under his arm, and some indications of hard drinking about his face. I noticed that he tried the handle of the door before he rang the bell, and was thus led to no very favorable impression of his design. Stepping behind a flight of steps, I noticed his movements as he went from door to door under successive rebuffs. As soon as he came up to my standing place, I said to him,

“Friend, do you know you are liable to be taken up for begging in the street?”

“I war’nt begging. I only asked for a bit of bread and cold meat.”

“Well, you will have a constable after you in a few minutes if you don’t stop that business.”

He turned on his heel and went from me, and as my eye followed him, and I remembered the well-furnished table from which I had just risen with no very grateful heart, I felt reproached; and quickening my steps, I followed and overtook him.

“Do you say you are hungry, friend?”

“Yes, I am.”

“Do you live in town?”

“No, I came in town last night.”

“Where from?”

“From Emmettsburg.”

“Is that your home?”

“Yes, I served my time there.”

“What is your business?”

“Shoemaking.”

“Why did you leave Emmettsburg?”

“To get work.”

“Well, you had better go to the Mayor’s, at the corner of Fifth and Chestnut Streets, and tell him you have no food, no home and no work.”

Off he went, and I followed by another route, and reached one door of the office, just as he entered at the other. Unfortunately the Mayor was at dinner, and I could only tell my story to the officer in attendance.

What shall be done with such a man? I asked.

“We can only send him down to Moyamensing for thirty days, or to Blockley,” was the reply.

Is that the only alternative—the prison, or the poor house, the latter with 2,700 inmates, and the former so overstocked as to make it a positive nuisance? Is it really so? There is work for one hundred men at this moment, in removing ice from the gutters, making the side walks passable, and the streets decent, and yet this able bodied vagrant must be imposed upon the tax-paying public as a prisoner or a pauper!

As we left the office, we saw the Emmettsburg shoemaker ignobly introduced to the ward room. I hope it will not be said that this is a case not likely to occur often, for in that event, I shall feel obliged to relate half a dozen other instances which have occurred within my own observation, and the details of which are any thing but agreeable.

I am clear in the opinion, that there must be some needless and sad defect in our municipal legislation or administration, if the power and capacity to

work is found twenty-four hours in succession, associated with vagrancy and mendicity. Am I wrong in this opinion? And whether I am or not, pray tell me how to treat street-beggars.

Miscellaneous Notices.

VAGRANT CHILDREN OF NEW YORK.— An organization has recently been effected in the city of New York, under the title of the “*Children’s Aid Society*,” the object of which is “to bring humane and kindly influences to bear on homeless boys—to preach in various modes the Gospel of Christ to the vagrant children of New York.”

As an evidence of the need of some such agency, it is stated that in one Ward alone (the eleventh) there were in 1852, out of 12,000 children between the ages of five and sixteen, only 7,000 who attended school, and only 2,500 who went to Sunday-school, leaving 5,000 without the common privileges of education, and about 9,000 destitute of public religious influence!

The views of the founders of this charity are summarily presented in a circular as follows:

A large multitude of children live in the city who cannot be placed in asylums, and yet who are uncared for and ignorant and vagrant. We propose to give to these work, and to bring them under religious influences. A central office has been taken, and an agent, (Charles L. Brace,) has been engaged to give his whole time to efforts for relieving the wants of this class. As means shall come in, it is designed to district the city, so that hereafter every Ward may have its agent, who shall be a friend to the vagrant child. “Boys’ Sunday Meetings” have already been formed, which we hope to see extended until every quarter has its place of preaching to boys. With these we intend to connect “Industrial Schools,” where the great temptations to this class, arising from want of work, may be removed, and where

they can learn an honest trade. Arrangements have been made with manufacturers, by which, if we have the requisite funds to begin, *five hundred boys*, in different localities, can be supplied with paying work. We hope too, especially to be the means of draining the city of these children, by communicating with farmers, manufacturers or families in the country, who may have need of such for employment. When homeless boys are found by our agents, we mean to get them homes in the families of respectable, needy persons in the city, and to put them into the way of an honest living.

It has been stated, in the public prints, that of 16,000 commitments for crime to the prisons of New York during the year, at least one-fourth were minors, and it is estimated that not less than 10,000 children in the city are daily suffering all the evils of vagrancy.

STREET BEGGING IN NEW YORK.— We have had occasion more than once to refer, in terms of high commendation, to the New York City organization for the relief of the poor, corresponding in its main features to our Union Benevolent Association. We regret to notice very loud and frequent complaints of the continuance and increase of street-begging, notwithstanding the laudable exertions of the Society. A leading city newspaper has said within a week or two, that upwards of a *half million* of dollars is annually spent by the authorities and various societies, in the way of charity, “yet our streets are thronged with beggars of all descriptions, and particularly the avenues and streets up town, in almost any of which, upon an average you can see from thirty to fifty going from house to house, to the excessive annoyance of families, who are often abused and insulted by them, because you do not meet their demands. In fact it has become a nuisance of the worst magnitude.”

There is much reason to apprehend that such nuisances must work their own abatement. If our authorities were strong enough and independent enough, to lay

hold of the BOYS AND GIRLS who constitute the materials from which street-beggars are manufactured, and compel them (as a matter of public safety) to submit to the discipline of an educational and industrial school, it would make a bright opening in the prospect. Or, if every man, woman and child who is found begging in the street, were transferred at once to some charitable institution, (if they have infirmities which prevent them from labor,) or to some working institution, (if they are able-bodied,) and there put to some wholesome labor in exchange for their sustenance and clothing, we should not be without hope. But we see no way of suppressing the evil, if neither of these methods is feasible.

NEW YORK PRISON ASSOCIATION.— We have seen only newspaper reports of the proceedings at the eighth anniversary of this active and very useful Association. We understand that their condemnation of the yoke and the shower, as modes of punishment, is very emphatic and unqualified, and among the interesting facts which are drawn from their report, we select the following:—

In the city of New York, since 1848, disorderly conduct (in almost every instance the result of strong drink) has steadily increased from 703 to 2,660, or 278 per cent.; intoxication has increased about 75 per cent., and the two together from 5,579 to 11,280. By a comparison of the prison statistics for the last five years, it appears that crimes against property have increased only about 50 per cent.; but that crimes against the person have increased 129 per cent., or from 1,300 in 1843 to 2,920 in 1852.

The increase has been the greatest in the highest crimes. Thus we find assaults to kill were 25 in 1848, and 39, 59, 61 and 75 in 1852, or three-fold. Manslaughter, in 1848, was 3, and then 4, 16, 11 in 1852, almost four-fold. Murder in 1848 was 9, and 9, 15, 21 and 56 in 1852, or more than six-fold.

Ninety per cent. of the whole number committed to this prison during the past year, were intemperate! The returns of sixteen State Prisons, for the year 1851, give us a grand total of 4,507 prisoners, 3,006 of whom were imprisoned for offences against property, and 784 against the person.

It is stated that there is a greater number of cases of bigamy and perjury in the State of New York, than in all the other fifteen States; there being twenty-one cases of bigamy in New York, and only fifteen in the other States; and seventeen cases of perjury to three in all the other States.

The average period of confinement in Connecticut is six years, seven months, twenty-nine days; and in the Eastern Penitentiary of Pennsylvania it is only two years, six months and three days.

NEW YORK STATE PRISONS.— The report of the State Penitentiaries of New York bear date December 1, and show that 129 more convicts were in custody at that time than in December, 1851. Of 1843, the whole number in confinement, 924 were at Sing Sing, 752 at Auburn and 167 at Clinton. One hundred and forty-three pardons were granted, or about 1 in every 12 convictions! The expenses of all the prisons exceeded the earnings by several thousands of dollars, showing the fallacy of the argument so potent with most Legislatures, that by associating prisoners in labor they become a source of profit, while separating them involves great expense. The Clinton prison is going largely into the iron business and wants more hands. We would respectfully suggest, whether there are not many persons at large in New York, and some quite considerable in importance and respectable in appearance, too, who would find appropriate employment there.

There has been some increase in the frequency of punishments by the yoke, the shower bath, the ball and chain, and solitude.

Of 613 commitments, two-thirds confessed intemperate habits. How many of the rest were moderate drinkers does not appear. The average degree of education in the convicts received is less than in some former reports.

IDIOTS IN NEW YORK.—There are two thousand eight hundred idiots in the State of New York. The report of the superintendent of the Idiot Asylum, near Albany, contains the following interesting passage:—"We have taught a child to walk when we had first to awaken or cultivate a fear of falling, as an incentive to any efforts on her part. We have awakened perceptions of sounds in ears where the sense of hearing resided without the use of it. We have developed perceptions of sight through eyes that had never performed their appropriate office. We have been teaching children to speak in every stage of articulation. Cases that three years since only promised to be hopeless, helpless burdens to their friends all their lives, have been elevated to the rank of happy, useful members of society. In almost all cases, and with very few, if any exceptions, those usually called idiots, under the age of twelve or fifteen, may be so trained and instructed as to render them useful to themselves, and fitted to learn some of the ordinary trades, or to engage in agriculture. Their minds and souls can be developed, so that they may become responsible beings, acquainted with their relations to their Creator and a future state, and their obligations to obey the laws and respect the rights of their fellow-citizens. In all cases, we believe, for we have seen what has been accomplished in apparently desperate cases, they can be made cleanly and neat in their personal habits, and enabled to enjoy the bounties of Providence and the Comforts of life, and to cease being incumbrances and annoyances to the families in which they reside."

BE BEFOREHAND WITH THE TEMPTER!— A friend tells us of a case in which a young girl of considerable personal attraction, was rescued from impending danger. Her mother was a widow with very scanty means of support. This girl had a taste for, and some skill in music. Had been at the public schools, and could

read and write with facility, and was indeed respectably educated for one in her station. Her mother had determined to take boarders, and to give an air of gentility to her house, she had also made arrangements to hire a piano. The introduction of the class of boarders which the mother expected, would have exposed the child to great danger. A Christian friend saw this, and by timely and judicious efforts succeeded in securing for her a situation where she would be protected and prepared for usefulness, and for gaining a respectable livelihood.

How much more hopeful such simple preventive measures are, than those which (though equally well meant) come later, and are at best but remedial in their character.

NEW PENITENTIARY IN MASSACHUSETTS.— We notice in the proceedings of the Legislature of Massachusetts that it is proposed to build a new State Prison. It is but a year or two since the Charlestown prison was greatly enlarged, so as to meet what was supposed to be the demand for convict-accommodation. It is earnestly to be hoped, that if a new prison should be erected in that State, the principle of separation will be adopted. If the two systems could be once fairly tried in the actual presence of the people of that ancient and intelligent Commonwealth, we should have strong confidence that the groundless prejudices against convict-separation would disappear, and that her example would be set as effectually for the furtherance of correct views on the important subject of prison discipline, as it has heretofore been cited for the furtherance of misapprehension and error.

STATE PRISON AT CHARLESTOWN, MASS.— The earnings of the inmates of the Charlestown State Prison, for the year ending September 30th, 1852, were \$6,921.17 over expenses. Of the inmates, 313 are Americans, 170 foreigners, 35 negroes and 12 mulattoes.

We have known a succession of annual reports of State prisons to be published, in which the earnings of the convicts, over and above the expenditures were quite “showy,” but by and by came a change in the administration, and a balance appears against the concern, sufficient to swallow up all the previously reported excess of earnings. Each report of a favorable year made its impression on the public mind, and hundreds of thousands who were misled by it, will never see a notice of the detection of the error,—to use no harsher term. We do not mean to intimate that there is any reason to distrust the foregoing item, but simply to admonish the reader that such statements are always to be taken with many grains of allowance.

ILLINOIS PENITENTIARY.— We understand that this institution is leased for a term of years to a person, who allows the State a certain sum for the labor of the convicts, &c. The report before us embraces the years 1851 and 1852. On the first of January, 1851, the prison contained 170 convicts. Since that time 38 have died, 41 have been pardoned, 1 has escaped, and 168 have been discharged by expiration of sentence—making the whole number discharged within the past two years, 248. During the same period, 295 have been received, and the whole number now in confinement is 207. Fourteen only were born in the State of Illinois!

NEW STATE REFORM SCHOOL.— The Legislature of New Hampshire at its last June session, received a report from a Board of Commissioners for the establishment of a State Reform School, to be located in the town of Concord, the cost not to exceed \$35,000, and to be planned for the accommodation of 300 boys, but finished at present for 120. An eligible site has been obtained, and we hope soon to hear that the institution is conferring wide and lasting benefits upon the community.

At the Somersetshire Sessions, held lately at Wells, **JUVENILE OFFENDERS.**—England, an interesting discussion took place on the subject of the punishment and reformation of juvenile offenders. The subject was brought before the Court by the reading of a circular, in which the magistrates were called upon to adopt a memorial to the Marquis of Lansdowne on this important subject. Mr. Lloyd Baker said he had had the subject under his consideration for the last fifteen years, and he laid before the Court statistics referring to the criminal career of a number of youths at that moment confined in the Gloucester County Prison, showing that they had been, most of them, previously convicted once or twice; that this kind of punishment, instead of having a moral effect upon them, appeared only to have hardened them in crime by their coming in contact with other bad adult characters, and that their trial and imprisonment had cost the county from \$75 to \$100 a-piece. His argument was in favor of an entirely new system of juvenile reformation. He was followed by other magistrates, who spoke of the course imposed upon them, to sentence mere children to confinement in a prison, as a most unsatisfactory one. There was no moral effect in such punishments, but, on the contrary, the effect was to break down the first barrier to crime, and it was found that the shame of imprisonment was overcome. One of them expressed an opinion that what was wanted was a public receptacle for offenders of this class who were not properly “prisoners,” but unfortunate individuals who, by neglect of their parents, had been led into error. He did not see why it should not be made compulsory upon such parents who so neglected their offspring as to lead them to crime, to contribute towards their support in such an establishment, in the same manner as a runaway parent was called upon to contribute to the support of his family. The discussion ended in the adoption of a memorial, which was signed by all the magistrates present, expressing their conviction, that the present mode of treating and disposing of juvenile offenders was most inefficient and unsatisfactory.

SINGULAR AVOCATION AND MODE OF LIFE IN LONDON.—

In a case of assault brought before a police-court, a most extraordinary character appeared as a witness. The man is by profession a thorough subterranean rat-catcher, for the supply of those who keep sporting dogs. One-half of his life is spent in quest of prey from the whole range of the sewerage of London. Furnished with a bull's eye lantern, a good-sized folding trap, and a short rake, he enters the main sewer, at the foot of Blackfriar's Bridge, and pursues his dangerous avocation, waist-deep in mud and filth of every description. The sewers literally swarm with rats, which he catches by hand, and places them in his cage as easy as if they were young kittens. His underground journeys extend for miles. He has been under Newgate, and along Cheapside to the Mansion House. He has traversed from Holborn to Islington, closely inspecting all the passages that enter the grand sewer of the mighty metropolis. On one occasion, an obstruction occurred to a drain at the foot of Holborn Hill. Terms were speedily agreed upon, and our subterranean explorer started off to the foot of Blackfriar's Bridge, and in half an hour his voice was heard down the gully-hole; he speedily cleared away the obstruction, and received his reward, thus saving the expense of breaking up the roadway. It is not, however, to the rats alone that he pays his attention; he frequently falls in with a rich prize, particularly in the City sewers. On one occasion he found a silk purse, containing gold and silver; on another a gold watch and seals, numbers of silver spoons, rings and other articles of value. He has been three times attacked with the typhus fever, but rapidly recovered on each occasion.

DEATH FROM SEPARATION!— A London paper tells us, that Mr. Bedford, the coroner for Westminster, held an inquest lately in Millbank Penitentiary, touching the death of Thomas Wilkinson, a convict, aged nineteen years, a clothdresser, who was found one Sunday morning lying dead and bleeding on the floor of his cell, having cut his throat with a razor which was given him to shave, *during the momentary absence of the warder in charge*. From the question of convict prison discipline having recently been slightly agitated in the public journals, the

separate system was inquired into by the coroner, who asked Dr. Bailly if he could throw any light on the case, to guide the jury as to the cause of the act. Dr. Bailly thought that it was brooding over the length of his sentence, and stated further that, during eighteen years, in that prison, from 1824 to 1842, with an average of 454 prisoners, only three had committed suicide, but then their sentences were only two, three or four years. Again, in the ten years as a convict prison, from 1843 to 1853, there had been thirteen suicides. So that he thought it was more the length of the sentences than the separate confinement, although he must own that the latter would accelerate or aggravate any disease which might be on a prisoner, and also tend to suicide, by giving them an opportunity when they would be brooding over a long prospect of imprisonment. The jury returned a verdict to the effect that the deceased destroyed himself during a state of temporary insanity, *brought on by the separate system!*

We have put a few words in italics to mark the absurdity of such a verdict. (1.) No evidence of insanity is stated, except that which the fatal act furnishes. (2.) As favorable an opportunity is offered, during half of every twenty-four hours in a congregate, as in a separate prison. (3.) If it is brooding over an unusually long sentence that produces suicidal insanity, the verdict should be, that the deceased destroyed himself during a state of temporary insanity, brought on by a mistake of the law or of its administrators!

MURDERS IN PHILADELPHIA.— It is our painful duty to record three deliberate and atrocious murders committed within the bounds of the city of Philadelphia since our last issue.

The first was committed in broad day, in one of the most frequented parts of the city, upon a man in his own store, and was attended with circumstances of ferocity rarely equalled. The perpetrator of the deed has not been discovered.

The second was the wanton butchery of an unoffending man, apparently without any motive, except the indulgence of a blood-thirsty malevolence.

The third was committed upon two unprotected females, and with a ferocity of which we should hope few human beings are susceptible, even in their most savage state. The only apparent motive for the cruel and dastardly deed was a pittance of money. How far the wretched monster on whom the guilt of this double murder has been fixed by the law and the testimony, may have been implicated in other deeds of blood ascribed to him by popular rumor, it is not for us to say, but we suppose there is no doubt that he was not long since a convict in the State Penitentiary at Sing Sing, N. Y., and was pardoned by the Executive of that State!

How much of his term of punishment was abridged by this interposition of extraordinary clemency, we are not informed; but if the full execution of his sentence would have carried the period of his confinement beyond the 10th of March, 1853, it is clear that the abridgment of it opened the way for the terrible deed which we have now recorded. And are we not justified in holding the pardoning power responsible, *in foro conscientiæ*, at least, for the consequences of taking a convict out of the hands of the ministers of justice, while he is undergoing wholesome discipline by their order, and sending him back into the community as one whose punishment was greater than he deserved? Who knows but that an ill-judged interposition of Executive power may sometimes breed a contempt for public authority, and stimulate a reckless convict to more audacious violations of law!

MISSOURI INSANE ASYLUM.— This institution is located in Fulton. It was opened a year since, and has received 70 patients. There are 460 acres of land attached to it, 30 of which are under culture. Dr. T. R. H. Smith is the principal physician.

On the 20th of December there were 232 **MISSOURI PENITENTIARY.**—convicts in custody, of whom 146 were from the county of St. Louis. Of the countries of their nativity, Ireland furnishes the largest number, and Germany the next largest. Of the States of the Union, Pennsylvania furnishes the largest number. We are happy to learn that the physician is a decided advocate of convict-separation.

IT IS SAID,
(AND WE PRESUME ON GOOD AUTHORITY,)

1. —THAT, on the 12th of November last, notice was given in the British House of Commons of a bill for the codification of the criminal laws.
2. —THAT, in the Massachusetts Legislature, the Committee on Prisons have reported against allowing the families of convicts a portion of their earnings.
3. —THAT, the London Society for improving the condition of the Insane, have offered a premium of twenty guineas for the best essay that shall be presented, showing the progressive changes since Pinel's time in the moral management of the Insane, and the various contrivances to dispense with mechanical restraints.
4. —THAT, the Emperor of France has decided, that out of ten millions of francs appropriated to the improvement of the lodging-houses of the laboring classes, three millions shall be put at the disposal of the Minister of the Interior to procure plans!
5. —THAT, the inmates of the Cincinnati House of Refuge are 235, and that the number of juvenile culprits at large is fearfully increasing.
6. —THAT, the three State prisons of New York, (containing 1783 convicts, of whom only 80 are females,) will require a considerable sum beyond their earnings for their support, viz.: for the Auburn prison, \$14,000; for the Sing Sing Prison, \$7,000; for the Clinton Prison, \$27,000. Yet the Clinton Prison is not regarded as an unsuccessful experiment!

We hope this important fact will be known to the Missouri Legislature before they determine to adopt the congregate system, on the ground of its economy. "As a general thing," says the report of a commissioner of Missouri on that subject, "the prisons employing this" (the associate system) "support themselves." It is wise to look before we leap.

7. —THAT, very favorable commencement has been made in the establishment of an institution in or near Philadelphia, for the instruction of idiots and feeble-minded children.
8. —THAT, the Deaf and Dumb Asylum at Jacksonville, Ill., admitted during its last term 100 pupils, 94 of whom were from within the State. The whole number of mutes in the State is estimated at 500.
9. —THAT, the Illinois Asylum for the Blind has in it 25 pupils. The whole number of the blind in the State is estimated at only 60. A building is nearly ready for their accommodation.
10. —THAT, the Illinois State Lunatic Asylum admitted during the year 138 patients, of whom 38 were restored to sanity, 50 were discharged, and 82 remain under treatment.
11. —THAT, the rite of confirmation, as observed in the Established Church of England, was lately administered by the Bishop of Manchester to 28 prisoners in the gaol in that town, varying in age from 14 to 55 years. The whole scene is represented as having been very impressive.
12. —THAT, the number of idiots in the State of New York is not less than 2,800, of whom one-fourth are under 14 years of age. There are 42 pupils in the State institution for idiots, 30 of whom are supported by the State. The trustees recommend the purchase of a building having accommodations for 100 pupils, of whom 64, (eight from each judicial district,) it is proposed to support at the expense of the State; and the remaining 36, by friends. The estimated cost of a suitable building is \$20,000; and the annual appropriation necessary to maintain the establishment will be \$10,000.
13. —THAT, a new organization of the police of New York contemplates the total release of the policemen from all political influence, as it provides

that they shall hold their offices during good behavior, and shall only be removed for neglect of duty or the violation of police regulations. That the Chief of Police shall be appointed by the Mayor, with the approval of the Board of Aldermen, and not the Common Council, as has been the law hitherto; that every policeman appointed must be a citizen of the United States, and a resident of the ward for which he has been nominated. He must also present to the Mayor, with his certificate of nomination, another, signed by twenty-five reputable citizens, two-thirds of whom must reside in the ward at the time of signing the certificate, certifying that they have been personally acquainted with him five years last past, and that during that time he has borne a good character for honesty, morality and sobriety. He must also present to the Mayor a certificate from the Chief of Police, certifying that the said applicant can read with ease, and write legibly the English language, that he well understands the first four rules of arithmetic, and that he is a proper person to appoint to said office.

These rules if faithfully observed, would probably exclude some of the present incumbents in most of our cities.

14. —THAT, the whole number of convicts in the Illinois Penitentiary is 227, and the whole expense of conveying convicts from the counties in the State to the penitentiary, is \$14,990.05! The Governor thinks it unwise to have a very large number of convicts congregated in one prison, and he submits to the consideration of the Legislature, whether the public interest in regard to this subject would not be better subserved by building another penitentiary, to be located at some eligible point in the northern part of the State.

We hope one of them, at least, will be established on the Pennsylvania system.

15. —THAT, a little ragged urchin, begging in the streets of Detroit, was asked by the lady of the house (where his baskets had been well replenished,) if his parents were living? “Only dad, marm,” said the boy. “Then you’ve enough in your basket now, to feed the family for some time,” said the lady. “Oh! no I haven’t neither,” said the lad, “for dad and me keeps five boarders; he does the housework, and I does the market’n.”

16. —THAT, a new edifice for the New York Deaf and Dumb Institution is to be built, the present location having been rendered ineligible for such a purpose, by the opening of new thoroughfares. The site selected is in the vicinity of Fort Washington, near the line of the Hudson River Rail-road, and the cost of the site and building is estimated at \$120,000.
17. —THAT, on the 1st day of January the population of the New York City Almshouse was 5557; out-of-door paupers, 1332; total, 6909—sufficient to stock a large village.
18. —THAT, the practice prevails among certain of the magistrates of the county of Philadelphia, (names not given,) of committing to the county prison persons known to be guiltless of any offence to justify their commitments—that such persons are sometimes retained in prison for weeks, and it is added, that this reprehensible system puts the county to an increased expense, merely to place costs in the pockets of the committing magistrates.
19. —THAT, instruction on the Phonetic plan has been given with much success in several of the penal institutions abroad, among which are the Preston House of Correction and the Glasgow Bridewell.
20. —THAT, not a single case has yet been known of a convict's losing his reason as a necessary and natural consequence of being separated from other convicts.

ACKNOWLEDGMENTS.

We have to express our thanks to various friends for their thoughtful kindness in forwarding us copies of reports, and among them are the following:

Annual reports of the Officers of the New Jersey State Lunatic Asylum for 1852.

Twentieth Annual Report of the State Lunatic Hospital at Worcester, Mass. for 1852.

Report of the Pennsylvania Hospital for the Insane for the year 1852.

Tenth Annual Report of the State Lunatic Asylum of the State of New York, 1852.

Annual Report of the State Lunatic Asylum at Harrisburg, Penn.

Twenty-Fourth Annual Report of the Inspectors of the Eastern State Penitentiary of Pennsylvania, 1852.

Report of the Inspectors of the Western State Penitentiary of Pennsylvania for 1852.

Sixteenth Annual Report of the Board of Directors of the Pennsylvania Institution for the Deaf and Dumb, 1852.

Twentieth Annual Report of the Managers of the Pennsylvania Institution for the Instruction of the Blind for 1852.

Report of the State Prison of New Jersey for 1852.

Sixth Annual Report of the Trustees of the State Reform School at Westborough, Mass.

Twenty-Seventh Annual Report of the Board of Managers of the Prison Discipline Society of Boston, 1851-2.

Act of Incorporation, By-Laws, &c., of New York Juvenile Asylum.

Twenty-Eighth Annual Report of the Managers of the Society for the Reformation of Juvenile Delinquents of New York, 1852.

Annual Report of Board of Managers of Philadelphia Charity Schools, 1852.

Report of Managers of the Magdalen Society for 1852.

Annual Report of the Managers of the Boston Asylum and Farm School for 1852.

Eight Report of the Baltimore Manual Labor School for Indigent Boys for 1852.

Report of Commissioners on the State Reform School of Pennsylvania.

PREMIUM FOR AN ESSAY ON JUVENILE DELINQUENCY.— At a meeting of the Board of Managers of the House of Refuge, Philadelphia, the following preamble and resolution were adopted, viz:

Whereas, The increase of Juvenile Delinquency in all the large cities of our country, has claimed the attention of philanthropists; and *whereas*, the Board of Managers of the House of Refuge, Philadelphia, are desirous that errors in modes of training the young, and other causes co-operating to produce the evil referred to, may be presented in such a form as to claim the serious consideration of parents and guardians throughout the land; therefore,

Resolved, That the Board of Managers do offer a premium of one hundred dollars for the best essay, and fifty dollars for that next in order of merit, to be awarded by a committee of literary gentlemen: *Provided*, that such essays shall not exceed fifty octavo pages in length, and shall be contributed before the first day of July, A. D. 1853; and whether successful or not in competition, shall be at the absolute disposal of the Board of Managers.

In accordance with the above preamble and resolution, the premiums therein named are now offered, without restriction as to the residence of competitors.

The Rt. Rev. Alonzo Potter, Frederick A. Packard, Esq., and Stephen Colwell, Esq., have consented to act as the Committee, to examine and adjudge as to the

merits of the Essays offered in competition.

Competitors for the above named premiums, will please address their manuscripts to “John Biddle, No. 6 South Fifth Street, Philadelphia;” and send therewith, their names and places of residence, under sealed envelopes.

As the object of the Board of Managers of the House of Refuge in offering the above-named premiums, is mainly to call the attention of parents and guardians to errors in the prevalent modes of training the young—a subject which should claim the attention of every reader—the undersigned would call the attention of editors of newspapers generally, throughout the United States, to this advertisement, and ask the favor of an insertion of it, or of the more important parts of it, in the columns of their papers.

By order of the Board of Managers of the House of Refuge.

THOS. P. COPE, President of H. of R.
JOHN BIDDLE, Secretary of H. of R.

Philadelphia, Feb. 17, 1853.

(Continued from second page of cover.)

highly valuable periodical, communicating much and various important information upon the subject of which it treats. It is the only publication of the kind in the country, is certainly a very much needed one, and ought, therefore, to be well sustained by the public.

From the Episcopal Recorder.

This periodical gives a large amount of information on Prison Discipline, and cannot fail to interest such as grieve over the sufferings occasioned by crime, and

regard the imprisoned criminal as still belonging to our common humanity, and needing the commiseration of the wise and good.

From the Public Ledger.

We have received the October number of the Pennsylvania Journal of Prison Discipline and Philanthropy, published under the direction of the Philadelphia Society for alleviating the Miseries of Public Prisons. It is stored with interesting matter.

From the Presbyterian.

We have been reading with great interest the Pennsylvania Journal of Prison Discipline and Philanthropy.

AN INQUIRY

INTO THE ALLEGED TENDENCY OF THE SEPARATION OF CONVICTS, ONE FROM THE OTHER, TO PRODUCE DISEASE AND DERANGEMENT.

BY A CITIZEN OF PENNSYLVANIA. *Philadelphia*: E. C. & J. Biddle. 1849.

It is, as might possibly be anticipated from the residence of the author, an elaborate and ardent defence of the separate system of confinement. The charge of its peculiar tendency to induce disease and insanity, is altogether denied, and the testimony of the successive physicians to the Eastern State Penitentiary, during a term of nearly twenty years, goes very satisfactorily to warrant the denial.

The author is not, however, inclined to rest at this, but carries the war into the enemies' camp. The chapter entitled Medical Practice, in a Congregate Prison, is calculated to attract attention, from the positions laid down in it, and their

startling illustrations, deduced from the well known case of Abner Rogers. It is not the time or the place for us to enter on this warmly controverted subject, and we have noticed the work only on account of its bearing on the subject of insanity, and as forming a part of its literature.—*Am. Journal of Insanity, published by the Superintendent of the New York Lunatic Asylum, July, 1850.*

So far as the leading controversy, in regard to the rival systems of prison discipline, is concerned, it seems to us to cover the entire ground with singular ability.—*Princeton Review.*

☞ A few copies of this pamphlet are still on hand, and may be had on application to the publishers, corner of Fifth and Minor streets, or to any member of the Acting Committee.

OFFICERS FOR 1852-3.

PRESIDENT—James J. Barclay.

VICE-PRESIDENTS—Townsend Sharpless, Charles B. Trego.

TREASURER—Edward Yarnall.

SECRETARIES AND COMMITTEE OF CORRESPONDENCE—

William Parker Foulke, Edward Townsend.

COUNSELLORS.

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The beginning of the third page of the cover was marked with: (Continued from second page of cover.).

The following table shows changes made by the transcriber. Page# refers to the number of the printed page. Page ii is the inside front cover. Page 58 is the eighth page in this issue which was numbered 58 (for the year). Page 70 is the twentieth page in this issue which was numbered 70, and so on. Page iv is the outside back cover.

	Change table	
Page#	original	changed to

Page#	original	changed to
ii	expresse	expressed
58	there	their
70	substracted	subtracted
74	attractions;	attractions;"
76	mismangement	mismanagement
76	impunity.	impunity."
82	viz	viz.
84	seasonable	reasonable
89	homocidal	homicidal
95	considered.	considered."
95	years!	years!"
96	VIII	VIII.
97	Unfortunatly	Unfortunately
105	viz	viz.
106	That	—That
107	That	—That
iv	Matron	Matron.
iv	Wickersham	Wickersham,

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